#1 · Foundations and Sources of Procedural Duties

What did Roncarelli v Duplessis establish about discretionary power in Canadian administrative law?

Answer

There is no such thing as absolute and untrammelled discretion. Discretion must be exercised for purposes connected to the statute. The Premier's cancellation of a liquor licence for an unrelated reason was unlawful, an application of the rule of law.

#2 · Foundations and Sources of Procedural Duties

Why does administrative law exist, in terms of delegated power and the rule of law?

Answer

Legislatures delegate decision-making to officials and bodies, and the rule of law requires that those delegates act within the limits of their statutory authority. Courts supervise legality through judicial review, ensuring that delegated power is not exercised arbitrarily.

#3 · Foundations and Sources of Procedural Duties

What are the three main parts of an NCA administrative law course?

Answer

Procedural fairness (the duty owed to those affected), substantive review of the merits and legality of decisions (the Vavilov framework), and the procedure and remedies of judicial review. Charter s 7 is the central Charter content.

#4 · Foundations and Sources of Procedural Duties

Can a legislature use a privative clause to shield a tribunal entirely from judicial review?

Answer

No. Under s 96 of the Constitution Act, 1867 and Crevier, a legislature cannot fully immunize a statutory tribunal from superior court review of its jurisdiction. Privative clauses may signal deference, but cannot remove review for legality altogether.

#5 · Foundations and Sources of Procedural Duties

What is the source and limit of a statutory decision-maker's authority?

Answer

The enabling statute. A decision-maker has only the powers conferred expressly or by necessary implication, and must exercise them within those limits. Exam trap: inherent or common law powers do not fill gaps the way they do for courts.

#6 · Foundations and Sources of Procedural Duties

How does an agency with regulatory functions differ from an adjudicative tribunal?

Answer

A tribunal hears parties and decides disputes or rights in a court-like way, so its fairness duties are higher. An agency mainly administers, investigates or regulates, and may owe less procedure. Always classify the actual function, not the label.

#7 · Foundations and Sources of Procedural Duties

Why is a tribunal described as a creature of statute?

Answer

It exists only because a statute created it and has only the powers the statute grants expressly or by necessary implication. Exceeding them is a jurisdictional or legality error, and the tribunal cannot expand its own authority by its own say-so.

#8 · Foundations and Sources of Procedural Duties

What is the constitutional source of municipal authority in Canada?

Answer

Provincial legislatures create municipalities under s 92(8) of the Constitution Act, 1867. Councils have only the powers the provincial statute delegates, with no inherent or constitutional powers, so by-laws are valid only within that statutory grant.

#9 · Foundations and Sources of Procedural Duties

What did Nicholson v Haldimand-Norfolk Police Commissioners change about the classification of decisions?

Answer

It recognized a general duty of fairness for administrative decisions, moving away from the rigid judicial or quasi-judicial versus administrative distinction. A duty of fairness no longer depends on a decision being called judicial; its content varies with context.

#10 · Foundations and Sources of Procedural Duties

Are tribunals constitutionally guaranteed the same independence as courts?

Answer

No. Under Ocean Port Hotel v BC, tribunal independence comes from statute and can be reduced by clear legislative language. Unwritten constitutional principles do not impose judicial-style independence on administrative tribunals. Courts and tribunals are not interchangeable.

#11 · Foundations and Sources of Procedural Duties

How does delegated legislation differ from an individual administrative decision?

Answer

Regulations, by-laws and orders in council are general rules of broad application, made under a statute. Individual decisions apply law to particular people. This distinction matters because fairness duties usually do not apply to legislative-type acts.

#12 · Foundations and Sources of Procedural Duties

Does the common law duty of fairness apply when the Governor in Council makes regulations?

Answer

Generally no. In Inuit Tapirisat, the Court held that a legislative act of general policy, not directed at a specific person, does not attract a duty of fairness. Compliance with any statutory consultation requirement is still mandatory.

#13 · Foundations and Sources of Procedural Duties

What standard of review applies to regulations challenged as outside the enabling statute?

Answer

Following Vavilov, the Supreme Court in Auer v Auer applied the reasonableness framework to review of delegated legislation, asking whether the regulation is consistent with the statutory purpose and scope. A regulation inconsistent with its enabling statute is invalid.

#14 · Foundations and Sources of Procedural Duties

What is functus officio and how does it limit a tribunal reconsidering its own decision?

Answer

Once a tribunal makes a final decision it has exhausted its jurisdiction and generally cannot reopen it. Chandler lets it correct accidental slips and finish an incomplete process, and a statute may add a reconsideration power.

#15 · Foundations and Sources of Procedural Duties

What are the Borowski factors for deciding whether to hear a moot judicial review?

Answer

The court asks whether an adversarial context remains, whether judicial economy justifies deciding the case, and whether deciding it would stray beyond the court's proper law-making role. It may decline even where the issue is live in principle.

#16 · Foundations and Sources of Procedural Duties

When does Ontario's Statutory Powers Procedure Act apply to a proceeding?

Answer

When a tribunal exercises a statutory power of decision and some law requires it to hold, or give the parties an opportunity for, a hearing. It does not itself create a hearing requirement. If no hearing is required, the Act does not apply.

#17 · Foundations and Sources of Procedural Duties

If the SPPA conflicts with a tribunal's own enabling statute, which prevails?

Answer

The SPPA prevails over inconsistent provisions in other Acts unless the other Act expressly states that its provisions apply despite the SPPA. Tribunals may make their own rules of practice, but they must stay consistent with the SPPA.

#18 · Foundations and Sources of Procedural Duties

What does the SPPA require regarding reasons for a tribunal's final decision?

Answer

A tribunal must give its final decision in writing and, if a party requests, give written reasons. Trap: this is a minimum floor for SPPA proceedings; the common law may require more, and reasons are not owed when the Act does not apply.

#19 · Foundations and Sources of Procedural Duties

How does British Columbia's Administrative Tribunals Act affect standard of review?

Answer

For tribunals covered by it, the Act sets legislated standards of review, with patent unreasonableness for decisions protected by a privative clause. Vavilov directs courts to respect legislated standards, so check the Act first before applying the Vavilov presumption.

#20 · Foundations and Sources of Procedural Duties

What does Alberta's Administrative Procedures and Jurisdiction Act address?

Answer

It governs whether Alberta decision-makers may decide constitutional questions, allowing only those designated by regulation to do so. Check the statute and regulation before assuming that a tribunal can decide a Charter issue.

#21 · Foundations and Sources of Procedural Duties

What is the threshold test for the common law duty of procedural fairness (Knight v Indian Head)?

Answer

A general duty of fairness applies to public authorities making administrative decisions that affect the rights, privileges or interests of an individual. Content then varies with context. Baker's factors set that content, not whether a duty exists.

#22 · Foundations and Sources of Procedural Duties

How can a legislature displace the common law duty of fairness?

Answer

Only through clear statutory language, express or by necessary implication (Ocean Port). Silence in the statute does not exclude fairness; the common law supplies missing procedure. Exclusion can be limited by the Constitution.

#23 · Foundations and Sources of Procedural Duties

Can a statute displace procedural requirements where Charter s 7 is engaged?

Answer

No, not simply by statutory wording. If life, liberty or security of the person is engaged, the principles of fundamental justice impose a procedural minimum that ordinary legislation cannot remove unless justified under s 1.

#24 · Foundations and Sources of Procedural Duties

Does Canadian law recognize substantive legitimate expectations arising from a promise by an official?

Answer

No. The doctrine of legitimate expectations is procedural only. A representation can create a right to certain procedures, such as notice or consultation, but cannot oblige the decision-maker to reach a particular substantive outcome.

#25 · Foundations and Sources of Procedural Duties

What must a representation show to ground a procedural legitimate expectation?

Answer

A clear, unambiguous and unqualified promise of a procedure, made by someone with authority, and reasonably relied on by the claimant. It cannot override statute or fetter a statutory duty, and it affects only the procedure owed.

#26 · Foundations and Sources of Procedural Duties

What does it mean to say a decision-maker has fettered its discretion, and what is the usual result on judicial review?

Answer

The delegate has bound itself in advance, by rigid policy or a fixed rule, instead of genuinely considering the case before it. The decision is unlawful and is typically quashed and returned for a fresh exercise of discretion.

#27 · Foundations and Sources of Procedural Duties

May an administrative decision-maker adopt policy guidelines to structure its discretion, and where is the line drawn?

Answer

Yes, guidelines promote consistency and are lawful. They become unlawful fettering when treated as binding rules, with the delegate refusing to listen to submissions or to depart from them in a case that warrants an exception.

#28 · Foundations and Sources of Procedural Duties

What is rubber-stamping, and why is it a ground of review even if the outcome looks reasonable?

Answer

The named delegate adopts a decision effectively made by someone else without independent consideration. The statute vested the power in that delegate, so the decision is made by the wrong person and is invalid regardless of its merits.

#29 · Foundations and Sources of Procedural Duties

What does the maxim delegatus non potest delegare mean, and when may a statutory power be delegated anyway?

Answer

A person given a statutory power must exercise it personally. Delegation is valid only if the statute authorizes it expressly or by necessary implication; ministers' powers are commonly exercised through departmental officials as a matter of practical necessity.

#30 · Foundations and Sources of Procedural Duties

Can a tribunal member discuss a pending decision with colleagues without breaching the rule against fettering or the duty of fairness?

Answer

Yes. Institutional consultation, such as full-board discussion, is allowed if it concerns policy and law, no new evidence is raised without notice to the parties, and each member keeps the final say on the outcome.

#31 · Foundations and Sources of Procedural Duties

What two steps must a claimant satisfy to establish a breach of section 7 of the Charter in an administrative setting?

Answer

First, the state decision must engage life, liberty or security of the person. Second, the deprivation must be contrary to the principles of fundamental justice, which include procedural fairness appropriate to the interests at stake.

#32 · Foundations and Sources of Procedural Duties

What did Singh v Minister of Employment and Immigration decide about refugee claimants and section 7?

Answer

Convention refugee claimants physically in Canada have section 7 rights. Deciding their claims on written material alone, with no oral hearing where credibility was in issue, violated fundamental justice.

#33 · Foundations and Sources of Procedural Duties

Does state-caused delay or stigma in an administrative process automatically engage security of the person under section 7?

Answer

No. Under Blencoe, only serious state-imposed psychological stress that is a foreseeable result of state action engages security of the person. Reputational harm and ordinary anxiety are not enough, and the bar is high.

#34 · Foundations and Sources of Procedural Duties

Why does state removal of a child from a parent engage section 7, and what procedural consequence followed in New Brunswick v G(J)?

Answer

A custody application seriously interferes with the parent's psychological integrity, engaging security of the person. Fundamental justice required, on the facts, state-funded counsel so the parent could participate fairly in the hearing.

#35 · Foundations and Sources of Procedural Duties

How do Charter section 7 procedural protections differ from common law procedural fairness when a statute is silent or restrictive?

Answer

Clear statutory language can oust or limit common law fairness, but it cannot oust section 7. A statute that denies fundamental justice is open to constitutional challenge, so Charter protection is the stronger and non-displaceable floor.

#36 · Foundations and Sources of Procedural Duties

What does C.B. Powell say about applying for judicial review before the tribunal has finished?

Answer

Courts will not ordinarily review an interlocutory or incomplete decision. Parties must run the process to its end and then seek review, absent exceptional circumstances, because fragmenting proceedings wastes resources and leaves the record incomplete.

#37 · Foundations and Sources of Procedural Duties

What are the three Downtown Eastside factors for public interest standing?

Answer

There is a serious justiciable issue, the applicant has a real stake or a genuine interest in it, and the proposed suit is a reasonable and effective way to bring the issue before the court. The factors are weighed flexibly, not as a strict checklist.

#38 · Foundations and Sources of Procedural Duties

What are the conditions for mandamus under the Apotex test?

Answer

A public legal duty to act that is owed to the applicant, a clear right to its performance, a demand and a refusal, no other adequate remedy, an order of some practical value, and a balance of convenience that favours relief.

#39 · Foundations and Sources of Procedural Duties

What must be shown to engage Charter s 7 in an administrative decision?

Answer

A deprivation of life, liberty or security of the person, and then a breach of a principle of fundamental justice. Economic interests, licences and reputational harm do not engage s 7 on their own, as Blencoe illustrates.

#40 · Foundations and Sources of Procedural Duties

When may an administrative tribunal apply the Charter and grant a remedy under section 24(1)?

Answer

If it has the power, express or implied, to decide questions of law, it can decide Charter issues and award remedies that fit its statutory scheme, unless the legislature clearly excluded that jurisdiction, as stated in Conway.

#41 · Foundations and Sources of Procedural Duties

What triggers the Crown's duty to consult Indigenous peoples under Haida Nation?

Answer

Three things: Crown knowledge, real or constructive, of a potential Aboriginal right or title claim; contemplated Crown conduct; and a potential adverse effect of that conduct on the claim or right.

#42 · Foundations and Sources of Procedural Duties

What determines the depth of consultation required along the Haida spectrum?

Answer

The strength of the prima facie claim and the seriousness of the potential adverse impact. Minimal cases need notice and information; strong claims with serious impact may require formal participation and written reasons.

#43 · Foundations and Sources of Procedural Duties

Does the duty to consult give Indigenous groups a veto, and is there always a duty to reach agreement?

Answer

No. Consultation must be meaningful and in good faith, and accommodation may be required, but there is no veto and no duty to agree. The Crown's honour demands a genuine process, not a guaranteed result.

#44 · Foundations and Sources of Procedural Duties

In Rio Tinto v Carrier Sekani, what kind of adverse impact is needed to trigger the duty to consult?

Answer

An impact on a current claim or right arising from new Crown conduct, with a causal link between them. Past wrongs or purely historical grievances do not trigger the duty.

#45 · Foundations and Sources of Procedural Duties

Can a regulatory tribunal fulfil the Crown's duty to consult, and what must be clear?

Answer

Yes, if the legislature gave it adequate powers and process, and if the Crown signals it is relying on the tribunal's process. Absent that, the Crown cannot assume the tribunal's hearing satisfied the duty (Clyde River).

#46 · Foundations and Sources of Procedural Duties

Does the duty to consult apply to the legislative process of passing a bill?

Answer

No. Under Mikisew Cree (2018), the law-making process is protected by parliamentary sovereignty and separation of powers, so the duty does not attach to development and enactment of legislation, though later executive action may trigger it.

#47 · Foundations and Sources of Procedural Duties

Why is there generally no duty of procedural fairness when council passes a general by-law?

Answer

Legislative decisions of general application are not adjudicative and affect the public at large, so no common law hearing right arises. Procedural duties come mainly from the enabling statute, such as required notice or public meetings.

#48 · Foundations and Sources of Procedural Duties

When can fairness duties arise even though a municipal council is acting through a by-law or resolution, as in Homex Realty?

Answer

When council in substance singles out an individual and decides their specific rights or interests, the decision is administrative or quasi-judicial in nature, and notice and an opportunity to be heard may be owed.

#49 · Foundations and Sources of Procedural Duties

What standard does a court apply when a municipal by-law is challenged on its merits, and what is the Catalyst Paper approach?

Answer

Reasonableness under Vavilov, applied with deference to elected councils (Auer v Auer, 2024 SCC 36). Catalyst Paper earlier said a by-law falls only if no reasonable body informed by the relevant factors could have passed it, for example bad faith.

#50 · Foundations and Sources of Procedural Duties

If a statute prescribes notice or public hearing steps before a by-law is passed and council skips them, what follows?

Answer

The by-law may be invalid, depending on whether the requirement is mandatory or directory and on the prejudice caused. Courts look to the statute's purpose, and substantial compliance can save minor defects.

#51 · Foundations and Sources of Procedural Duties

How does the Supreme Court's decision in Spraytech (Hudson) direct courts to read the enabling powers of municipalities?

Answer

Broadly and generously, in line with the presumption of municipal competence, so a local by-law such as a pesticide restriction can be upheld if it fits the general welfare power and does not conflict with higher legislation.

#52 · Foundations and Sources of Procedural Duties

What threshold question decides whether a body's decision is open to judicial review at all, rather than being a private matter?

Answer

Whether the body exercises state authority of a sufficiently public character, usually statutory power. Judicial review is a public law remedy, so purely private or consensual decisions fall outside it, whatever their importance to the parties.

#53 · Foundations and Sources of Procedural Duties

A church congregation expels a member. Can a court judicially review the decision, according to the Supreme Court in Highwood Congregation v Wall?

Answer

Not by judicial review, because the congregation is a voluntary association that does not exercise delegated state power. A court may intervene only if a legal right, such as a property or contractual right, is engaged, and then in private law.

#54 · Foundations and Sources of Procedural Duties

Does a body's receipt of public funding or its performance of a public-interest function make its decisions reviewable?

Answer

No, not by itself. The question is whether the decision is made under public law authority, usually a statute or prerogative power. Public funding or a public flavour to the work is relevant but not determinative, and a private contractual source weighs against review.

#55 · Foundations and Sources of Procedural Duties

Why can a dismissed public employee with an employment contract often not use judicial review, as Dunsmuir explained?

Answer

Where the employment relationship is governed by contract, the employee's remedy lies in private law, such as wrongful dismissal. Public law protection is reserved for office holders who serve at pleasure or whose position is defined by statute, not ordinary contractual employees.

#56 · Foundations and Sources of Procedural Duties

In federal court proceedings, what kind of body can be judicially reviewed under the Federal Courts Act?

Answer

A federal board, commission or other tribunal, meaning a body or person exercising or purporting to exercise jurisdiction or powers conferred by an Act of Parliament or by a prerogative order. Provincial bodies go to the provincial superior court.

#57 · Foundations and Sources of Procedural Duties

Which court hears judicial review of a decision of the Immigration and Refugee Board or an immigration officer, and what must the applicant first obtain?

Answer

The Federal Court, after obtaining leave (permission) under the Immigration and Refugee Protection Act. Leave is a screening step: an application is not heard on the merits unless a judge first grants it, usually without reasons.

#58 · Foundations and Sources of Procedural Duties

What are the leave application deadlines for judicial review of an immigration matter under the Immigration and Refugee Protection Act?

Answer

Generally 15 days after notice of the decision for matters arising in Canada, and 60 days for matters arising outside Canada. These are short, and the Federal Court may extend time only on the usual test for an extension.

#59 · Foundations and Sources of Procedural Duties

When can a Federal Court judicial review judgment in an immigration case be appealed to the Federal Court of Appeal?

Answer

Only if the Federal Court judge certifies a serious question of general importance that would be dispositive of an appeal. Without a certified question there is no appeal, which is a common exam trap.

#60 · Foundations and Sources of Procedural Duties

What did Baker v Canada hold about humanitarian and compassionate decisions and the duty of fairness?

Answer

Procedural fairness applies to humanitarian and compassionate decisions even though they are discretionary, and the interests of affected children must be weighed. Written reasons may be required, with notes of the officer qualifying as reasons, given the importance of the decision.

#61 · Foundations and Sources of Procedural Duties

What did Singh v Minister of Employment and Immigration decide about refugee claimants and the Charter?

Answer

Section 7 of the Charter applies to refugee claimants physically in Canada, since removal threatens life, liberty and security of the person. Fundamental justice required an oral hearing where credibility was at stake, not a paper review.

#62 · Foundations and Sources of Procedural Duties

What standard of review applies on judicial review of an immigration officer's substantive decision after Vavilov?

Answer

Presumptively reasonableness, as with most administrative decisions. Procedural fairness questions are not given a standard of review in the Vavilov sense: the court asks whether the process was fair in the circumstances.

#63 · Foundations and Sources of Procedural Duties

Did the old distinction between judicial, quasi-judicial and administrative decisions control the existence of a duty of fairness after Nicholson?

Answer

No. Nicholson v Haldimand-Norfolk held that a general duty of fairness applies to administrative decisions affecting rights, privileges or interests. The labels now only influence how much procedure is owed, not whether any is owed.

#64 · Foundations and Sources of Procedural Duties

What is the modern role of the label 'quasi-judicial' when deciding what procedure a tribunal must follow?

Answer

It is a pointer, not a gate. The closer the process resembles a court, the more court-like procedure is expected, but the content of fairness is set by the Baker factors, not by choosing the correct label.

#65 · Foundations and Sources of Procedural Duties

Does a duty of procedural fairness apply to decisions of a legislative nature, such as cabinet regulations of general application?

Answer

Generally no. Decisions of a legislative or general policy character, like those in Inuit Tapirisat, do not attract a duty of fairness. The duty attaches to decisions affecting the rights, privileges or interests of an individual in particular.

#66 · Foundations and Sources of Procedural Duties

Name the five Baker factors used to fix the content of the duty of fairness.

Answer

The nature of the decision and the process followed in making it; the statutory scheme; the importance of the decision to the person affected; the person's legitimate expectations; and the choices of procedure made by the decision-maker. The list is not exhaustive.

#67 · Foundations and Sources of Procedural Duties

What does the doctrine of ultra vires mean in administrative law?

Answer

An administrative body can act only within the powers conferred by statute, or necessarily implied by it. A decision made without authority, or beyond its limits, is unlawful and can be set aside on judicial review.

#68 · Foundations and Sources of Procedural Duties

After Vavilov, is 'jurisdictional error' still a separate category of correctness review?

Answer

No. Vavilov abolished the true question of jurisdiction category. The court instead asks whether the decision is reasonable in light of the statutory limits on the decision-maker's power, applying correctness only for the recognised categories.

#69 · Foundations and Sources of Procedural Duties

What did Roncarelli v Duplessis establish about discretionary power?

Answer

There is no such thing as absolute and untrammelled discretion. Discretion must be exercised for purposes connected with the statute, and a premier's revocation of a liquor licence for an irrelevant reason was unlawful and attracted personal liability.

#70 · Foundations and Sources of Procedural Duties

How do courts treat a challenge to the vires of delegated legislation such as a regulation, per Katz Group?

Answer

Regulations are presumed valid and the challenger bears the burden. Historically Katz Group (2013) asked if a regulation was irrelevant, extraneous or unrelated to the statute; Auer v Auer (2024 SCC 36) now applies Vavilov reasonableness.

#71 · Foundations and Sources of Procedural Duties

May an administrative decision-maker adopt a rigid policy that fixes outcomes in advance and refuse to consider individual circumstances?

Answer

No, not where the statute grants discretion. Fettering discretion by treating a guideline as binding is an error. Guidelines may be applied, but the decision-maker must stay open to the particular case.

#72 · Foundations and Sources of Procedural Duties

What is the 'he who hears must decide' principle, and what flexibility did Consolidated-Bathurst allow?

Answer

Those who decide should be the ones who heard the case. Consolidated-Bathurst allowed a full board to discuss a panel's draft decision with colleagues who did not hear it, provided no new facts or issues arose without a chance to respond.

#73 · Foundations and Sources of Procedural Duties

What protects the deliberations of a tribunal from being probed by a party seeking to challenge the decision?

Answer

Deliberative secrecy, confirmed in Tremblay and Ellis-Don. The reasoning process is presumptively protected, and evidence of how members reached their decision is generally inadmissible unless there are strong grounds of a breach of natural justice.

#74 · Foundations and Sources of Procedural Duties

Can a statutory decision-maker delegate the power to decide to someone else, and what is the default rule?

Answer

The maxim delegatus non potest delegare applies: a delegate cannot sub-delegate without authority. Express or necessarily implied statutory authority allows it, and ministerial powers are usually exercised through officials in the minister's name.

#75 · Foundations and Sources of Procedural Duties

When a hearing officer makes findings and recommendations to a different final decision-maker, what must the decision-maker do to remain fair?

Answer

Give the parties a fair opportunity to be heard on any information or reasoning the decision-maker relies on that is new, and reach a genuine decision. Rubber-stamping the recommendation, or departing from credibility findings without hearing the parties, risks unfairness.

#76 · Foundations and Sources of Procedural Duties

Where does a tribunal's power to make its own procedural rules come from, and what limits it?

Answer

It comes from its enabling statute, expressly or by necessary implication (tribunals are often called masters of their own procedure). The rules cannot contradict the statute or fall below the common law fairness floor.

#77 · Foundations and Sources of Procedural Duties

Does a tribunal's own rule of procedure override the common law duty of fairness if the two conflict?

Answer

No. A rule made under a statute can add to or specify procedure, but it cannot lawfully displace the minimum fairness the context demands unless the enabling statute clearly authorizes that result. Clear statutory language is needed to oust fairness.

#78 · Foundations and Sources of Procedural Duties

What is the legal status of a tribunal practice direction compared with a regulation or statutory rule?

Answer

A practice direction is usually guidance on how the tribunal will run its process, not binding law. It cannot amend the statute or regulations, and a decision-maker may depart from it where fairness or the statute requires.

#79 · Foundations and Sources of Procedural Duties

A tribunal refuses an adjournment under its own rules. What question does a reviewing court ask on procedural fairness?

Answer

Not whether the tribunal followed its rules, but whether the process was fair in the circumstances, considering the Baker factors. Breaching its own rule can be evidence of unfairness, yet compliance does not guarantee fairness.

#80 · Foundations and Sources of Procedural Duties

How does a reviewing court treat a tribunal's interpretation of its own procedural rules after Vavilov?

Answer

Generally with deference on a reasonableness footing, because the tribunal knows its process best. Whether the overall procedure was fair is a separate question, reviewed with correctness-like attention to fairness and no deference to the tribunal's view.

#81 · Foundations and Sources of Procedural Duties

Besides Inuit Tapirisat, which case confirms that cabinet policy decisions of general application attract no common law fairness duty, and where must a duty to consult come from?

Answer

Reference re Canada Assistance Plan [1991] confirms it: legislative and policy decisions of general application attract no common law fairness duty. Any duty to consult must come from the enabling statute.

#82 · Foundations and Sources of Procedural Duties

A statute says the minister 'shall consult affected groups' before making a regulation. Why does the wording matter?

Answer

'Shall' signals a mandatory consultation precondition to valid regulation-making. Courts then ask what consultation the statute actually requires, and skipping a mandatory step may leave the regulation invalid, unlike a merely directory step.

#83 · Foundations and Sources of Procedural Duties

Does the Crown's constitutional duty to consult Indigenous peoples apply to the legislative process of making statutes?

Answer

No. Mikisew Cree (2018) held that the duty to consult is not triggered by the law-making process of Parliament or legislatures. Statutory consultation clauses and executive decisions affecting rights are analysed separately.

#84 · Foundations and Sources of Procedural Duties

If a regulation was made without a mandatory statutory consultation step, what is the usual remedy on judicial review?

Answer

A declaration that the regulation is invalid or of no effect, since it was not made in the manner the enabling statute requires. Whether the defect is fatal depends on whether the step was mandatory and its importance.

#85 · Foundations and Sources of Procedural Duties

On what standard are the substantive limits of delegated legislation (vires of a regulation) now reviewed?

Answer

Auer v Auer (2024 SCC 36) held that Vavilov's framework governs review of regulations, with reasonableness as the starting point, replacing the narrower Katz 'irrelevant, extraneous or completely unrelated' test.

#86 · Foundations and Sources of Procedural Duties

What is the status of an ombudsman's recommendation to a government body?

Answer

Ombudsman recommendations are generally non-binding. They are a political accountability tool and do not replace judicial review, which tests legality; a government decision may still be challenged on its own legal merits.

#87 · Foundations and Sources of Procedural Duties

A statute offers an internal review or appeal to a minister. Can the applicant go straight to court for judicial review?

Answer

Courts usually refuse to hear judicial review until the statutory route is exhausted, absent exceptional circumstances (C.B. Powell v CBSA, FCA). This avoids fragmenting proceedings and gives the decision-maker a first chance to correct errors.

#88 · Foundations and Sources of Procedural Duties

What does 'adequate alternative remedy' mean as a ground to decline judicial review?

Answer

A court has discretion to refuse review where another effective, accessible remedy exists, such as an appeal. Adequacy is judged in context, looking at the scope of the alternative and its speed, cost and ability to give real relief.

#89 · Foundations and Sources of Procedural Duties

Does a statutory right of appeal to a court change the standard of review that court applies?

Answer

Yes. Under Vavilov, a statutory appeal mechanism means the court applies appellate standards: correctness for questions of law and the extricable legal questions, palpable and overriding error for facts and mixed fact and law.

#90 · Foundations and Sources of Procedural Duties

Is an appeal to the minister under a statute the same as judicial review of the original decision?

Answer

No. A ministerial appeal is an administrative reconsideration, often broader and on the merits, while judicial review is a supervisory court process limited to legality. The minister's own decision is then itself reviewable in court.

#91 · Foundations and Sources of Procedural Duties

Reading an exam statute: what four things should you identify first in the provision?

Answer

The source and scope of the power, its limits or preconditions, the required procedure (notice, hearing, time limits), and the remedy or appeal clauses (including any privative clause). Together they set jurisdiction, fairness and the standard of review.

#92 · Foundations and Sources of Procedural Duties

A statute says a decision is 'final and not subject to appeal.' What does that do to judicial review?

Answer

It does not oust judicial review, which is protected by the rule of law. After Vavilov, a privative clause does not change the reasonableness presumption; it simply means there is no statutory appeal that would trigger appellate standards.

#93 · Foundations and Sources of Procedural Duties

What is the starting point for the standard of review under Vavilov, and what rebuts it?

Answer

Reasonableness is presumed. It is rebutted by legislative intent (a statutory appeal right or an express standard) or by the rule of law (constitutional questions, general questions of law of central importance, and jurisdictional boundary disputes between tribunals).

#94 · Foundations and Sources of Procedural Duties

On the exam, how do you tell whether a statutory word like 'may' or 'shall' creates a duty or a discretion?

Answer

'Shall' indicates an obligation and 'may' a discretion, but context controls (modern principle of interpretation). A discretion must still be exercised within statutory purposes, reasonably, and without fettering.

#95 · Foundations and Sources of Procedural Duties

How must a decision-maker balance competing statutory objectives to be reasonable under Vavilov?

Answer

The decision must be justified, transparent and intelligible, and responsive to the statutory scheme, the evidence and the parties' submissions. It must show the competing objectives were considered and a defensible balance was reached.

#96 · Foundations and Sources of Procedural Duties

Is a published ministerial guideline on how discretion will usually be exercised unlawful in itself?

Answer

No. Guidelines may structure discretion and promote consistency. They become unlawful fettering only if treated as binding rules that foreclose consideration of the individual circumstances the statute requires.

#97 · Foundations and Sources of Procedural Duties

Where an administrative decision limits a Charter right or value, what framework applies instead of ordinary Vavilov reasonableness?

Answer

The Doré/Loyola proportionality framework: the decision-maker must proportionately balance the Charter protection against the statutory objectives, and the court reviews that balance for reasonableness. Section 7 questions may also arise.

#98 · Foundations and Sources of Procedural Duties

Why can't a decision-maker simply rely on 'the public interest' as a general justification for a decision?

Answer

Discretion is limited to the purposes of the enabling statute. Unconfined appeals to public interest, or considering irrelevant factors, can render the decision unreasonable or an abuse of discretion even if the aim sounds laudable.

#99 · Foundations and Sources of Procedural Duties

In Baker, what did the officer's notes reveal that made the H&C decision unreasonable?

Answer

They showed reliance on stereotypes about mental illness and a failure to give proper weight to the best interests of the children. The Court treated the notes as the reasons and found the discretion unreasonably exercised.

#100 · Foundations and Sources of Procedural Duties

A tribunal chair assigns a panel's decision to a staff lawyer by practice direction. Why is this vulnerable?

Answer

A practice direction is not statutory authority. The power to decide cannot be sub-delegated without express or necessarily implied authority, so a decision made by the staff lawyer would be made without jurisdiction.

#101 · Triggers and Content of Procedural Fairness

What general common law rule did Knight v Indian Head School Division No 19 confirm about when procedural fairness is owed?

Answer

A general duty of fairness applies to administrative decisions of a public authority that affect the rights, privileges or interests of an individual. The trap: the duty exists broadly, and only its content varies.

#102 · Triggers and Content of Procedural Fairness

List the three Knight factors used to decide whether the duty of fairness is triggered.

Answer

The nature of the decision, the relationship between the decision-maker and the individual, and the effect of the decision on the individual's rights. Do not confuse them with the Baker factors, which set content, not trigger.

#103 · Triggers and Content of Procedural Fairness

Which Knight factor asks whether a decision is administrative and specific rather than legislative and general?

Answer

The nature of the decision. Decisions that are final, specific and adjudicative or administrative in character favour fairness, while broad policy or legislative decisions of general application usually attract none.

#104 · Triggers and Content of Procedural Fairness

Why is the old distinction between a right and a privilege irrelevant to triggering procedural fairness today?

Answer

Nicholson v Haldimand-Norfolk and later cases rejected it. Fairness turns on effect on rights, privileges or interests, so a probationary constable or licence applicant can be owed fairness despite lacking a strict legal right.

#105 · Triggers and Content of Procedural Fairness

Does the Knight test decide how much procedure is owed once the duty is triggered?

Answer

No. Knight answers whether a duty exists. The content of the duty is set by a separate contextual analysis, the Baker factors, so a duty found under Knight may still call for minimal procedure.

#106 · Triggers and Content of Procedural Fairness

How does the relationship between decision-maker and individual affect the duty of fairness, using Knight itself?

Answer

Knight held that even an office holder dismissed at pleasure was owed some fairness, because the relationship was with a public body. The fairness duty is lower for at-pleasure offices than for dismissal only for cause.

#107 · Triggers and Content of Procedural Fairness

After Dunsmuir, when is a public employee dismissed under a contract of employment entitled to public law procedural fairness?

Answer

Generally not. Where the relationship is governed by a contract of employment, the remedy lies in private law (contract), not judicial review. Office holders removable at pleasure or for cause remain in the public law category.

#108 · Triggers and Content of Procedural Fairness

What distinguishes a public office holder from a contractual employee for fairness purposes?

Answer

An office holder exercises statutory or prerogative powers and holds a public office, so removal engages public law fairness. A contractual employee is protected by the contract and common law reasonable notice, not by administrative law.

#109 · Triggers and Content of Procedural Fairness

Does a holder of an office at pleasure have any procedural fairness entitlement on dismissal?

Answer

Yes, a minimal one, such as being told the reasons and having an opportunity to respond. Knight held that this lower level of fairness applies, and it was found satisfied there. A bare power to dismiss does not exclude the duty.

#110 · Triggers and Content of Procedural Fairness

According to Highwood Congregation of Jehovah's Witnesses v Wall, when will a court review a private voluntary association's decision?

Answer

Judicial review applies only to decisions of a sufficiently public character, such as an exercise of statutory power. A private association's expulsion is reviewable only if a legal right (property or contract) is at stake, not mere membership interests.

#111 · Triggers and Content of Procedural Fairness

Why is a public body's decision on a person's employment status sometimes outside administrative law altogether?

Answer

Because the Knight relationship factor sorts matters. If the person's rights arise purely from a private contract with the body, the matter is for contract law. Administrative law applies where the decision flows from public statutory power.

#112 · Triggers and Content of Procedural Fairness

Does fairness apply to a purely preliminary step such as an investigation that does not finally decide anyone's rights?

Answer

Not automatically. Courts ask whether the step is effectively determinative or has serious consequences for the person. A mere gathering of facts, with no findings, typically attracts little or no fairness.

#113 · Triggers and Content of Procedural Fairness

How did Irvine v Canada (Restrictive Trade Practices Commission) treat an investigative body's duty of fairness?

Answer

The duty varies with the function. Investigative steps that do not determine rights call for less than adjudication. The more the investigation is a step toward consequences for the person, the higher the fairness owed.

#114 · Triggers and Content of Procedural Fairness

When may a recommendation to a final decision-maker attract procedural fairness even though the recommender decides nothing?

Answer

When the recommendation is in practice likely to be adopted or shape the outcome. Courts look to real impact on the person's interests, so an unfair process at the recommendation stage can taint the final decision.

#115 · Triggers and Content of Procedural Fairness

What did the Krever commission case say about findings of misconduct made by a body that makes no binding decision?

Answer

Such a body, though only reporting, must give notice to persons whose reputations may be damaged by findings of misconduct. Fairness is triggered by the effect of adverse findings, not by the lack of binding legal consequences.

#116 · Triggers and Content of Procedural Fairness

Is a one-sided, preliminary screening decision always exempt from fairness because a hearing will follow later?

Answer

No. A later hearing can cure an earlier lapse only if the earlier step did not itself decide rights or irreparably prejudice the person. The question is the practical effect of the step, not its label.

#117 · Triggers and Content of Procedural Fairness

What is the doctrine of legitimate expectations in Canadian administrative law?

Answer

If a public authority's conduct, such as a promise or settled practice, leads a person to expect a certain procedure, fairness requires that procedure. It is an aspect of procedural fairness, not an independent source of rights.

#118 · Triggers and Content of Procedural Fairness

What qualities must a representation have to ground a legitimate expectation under Canada (AG) v Mavi?

Answer

It must be clear, unambiguous and unqualified. A vague, conditional or general statement of policy is not enough, and the representation must come from the authority with power to make it.

#119 · Triggers and Content of Procedural Fairness

Can legitimate expectations compel a particular substantive outcome in Canadian law?

Answer

No. The doctrine in Canada gives procedural protection only, such as notice or consultation. It cannot require the decision-maker to reach a specific result or fetter a statutory discretion, which is why a promised outcome fails.

#120 · Triggers and Content of Procedural Fairness

How does legitimate expectation fit into the Baker factors for the content of fairness?

Answer

It is one of the five Baker factors. A clear promise of a procedure or a settled practice raises the procedure owed, while the absence of any such conduct leaves the other four factors to set content.

#121 · Triggers and Content of Procedural Fairness

Can an established administrative practice, with no express promise, create a legitimate expectation?

Answer

Yes. Mavi recognized that conduct, including a consistent past practice, can ground the expectation if it is clear, unambiguous and unqualified. The person must show the practice was one the authority could be taken to adopt.

#122 · Triggers and Content of Procedural Fairness

Does procedural fairness generally apply to the making of legislation, including regulations of general application?

Answer

No. The Reference re Canada Assistance Plan confirmed that legislative decisions of a general nature attract no duty of fairness. The remedy lies in the political process, not judicial review of process.

#123 · Triggers and Content of Procedural Fairness

Why did Inuit Tapirisat hold that Cabinet's decision on a rate appeal owed no duty of fairness?

Answer

The Governor in Council acted in a legislative, policy-laden capacity, not an adjudicative one. Decisions of a legislative nature, made by the executive for the broad public, do not attract fairness.

#124 · Triggers and Content of Procedural Fairness

What was the Homex Realty point about municipal by-laws and fairness?

Answer

A municipal by-law that is legislative in form may still be subject to fairness if it is directed at one person or property. The substance, not the label, decides whether the decision is general policy or a specific administrative act.

#125 · Triggers and Content of Procedural Fairness

If a statute expressly requires consultation before regulations are made, is there still no judicial review of the consultation?

Answer

Review is possible. The general common law gives no fairness right, but a statutory consultation requirement is binding, and courts will enforce it. The exam trap is mistaking the common law gap for a statutory one.

#126 · Triggers and Content of Procedural Fairness

Does a genuine emergency extinguish the duty of procedural fairness owed by a decision-maker?

Answer

No. Urgency can reduce the content of fairness or postpone the hearing until after interim action, but the duty itself remains. Trap: treating urgency as a licence to skip fairness altogether.

#127 · Triggers and Content of Procedural Fairness

A regulator suspends a licence immediately on public safety grounds without a prior hearing. When can this withstand judicial review?

Answer

When the suspension is genuinely protective and interim, not punitive, and a prompt, meaningful hearing follows. Trap: an indefinite suspension with no timely hearing becomes a final sanction imposed unfairly.

#128 · Triggers and Content of Procedural Fairness

Does statutory silence about hearings in an emergency scheme mean no procedural fairness is owed?

Answer

No. Fairness is a common law duty implied into the scheme and is displaced only by clear statutory language or necessary implication. Silence on procedure is not an exclusion of fairness.

#129 · Triggers and Content of Procedural Fairness

Can a post-decision hearing or appeal cure a denial of fairness at first instance?

Answer

Sometimes, if the later process is a full, independent rehearing capable of remedying the defect (Harelkin). Trap: it will not cure serious unfairness or a later process that merely reviews the record.

#130 · Triggers and Content of Procedural Fairness

Will a court excuse a denied hearing because the result would inevitably have been the same?

Answer

Rarely. Courts refuse relief on futility grounds only where the outcome is truly inevitable. Fairness protects the right to be heard, so speculation about the likely result is no answer.

#131 · Triggers and Content of Procedural Fairness

Singh v Minister of Employment and Immigration: what did the Supreme Court hold about refugee claimants and section 7?

Answer

Wilson J, for three judges, held Convention refugee claimants have s 7 interests and fundamental justice required an oral hearing where credibility was at stake; Beetz J reached the same result under Bill of Rights s 2(e).

#132 · Triggers and Content of Procedural Fairness

Does deportation of a permanent resident for serious criminality, by itself, engage section 7 of the Charter?

Answer

No. Deportation alone does not engage life, liberty or security of the person, because non-citizens have no constitutional right to remain in Canada (Medovarski). Section 7 may arise from related consequences or detention.

#133 · Triggers and Content of Procedural Fairness

When does removal from Canada engage section 7 under Suresh?

Answer

Where removal exposes the person to a substantial risk of torture. Section 7 is engaged, and fundamental justice demands procedural protections, including notice, disclosure of the case and an opportunity to respond in writing.

#134 · Triggers and Content of Procedural Fairness

Charkaoui v Canada: what was wrong with the security certificate process under the Immigration and Refugee Protection Act?

Answer

Detention and reliance on secret evidence without adequate disclosure infringed section 7, because the named person could not know and meet the case. The scheme was not saved by section 1.

#135 · Triggers and Content of Procedural Fairness

Is immigration detention a section 7 matter, and why?

Answer

Yes, because detention directly deprives liberty. Detention review must therefore meet principles of fundamental justice, including meaningful, timely review. Trap: this differs from the removal decision itself, which does not automatically engage section 7.

#136 · Triggers and Content of Procedural Fairness

Does the Canadian Bill of Rights apply to provincial decision-makers?

Answer

No. It is an ordinary federal statute binding only federal law and federal decision-makers. Provincial administrative bodies are governed by common law fairness, provincial statutes and the Charter, not the Bill of Rights.

#137 · Triggers and Content of Procedural Fairness

What does section 1(a) of the Canadian Bill of Rights guarantee that is relevant to administrative decisions?

Answer

The individual's right to life, liberty, security of the person and enjoyment of property, and not to be deprived thereof except by due process of law. Trap: it is limited to those listed interests.

#138 · Triggers and Content of Procedural Fairness

How does section 2(e) of the Canadian Bill of Rights differ from section 1(a) in trigger?

Answer

Section 2(e) guarantees a fair hearing in accordance with the principles of fundamental justice for the determination of rights and obligations. It is not confined to life, liberty, security or property.

#139 · Triggers and Content of Procedural Fairness

Can Parliament override the Canadian Bill of Rights, and how?

Answer

Yes, by expressly declaring in an Act that it operates notwithstanding the Bill of Rights. Absent that declaration, federal legislation is construed and applied so as not to infringe its guarantees.

#140 · Triggers and Content of Procedural Fairness

Why is the Canadian Bill of Rights less significant today than the Charter in administrative law?

Answer

It is a statute, not constitutional, and applies only federally. It lacks the Charter's strong remedial scope, so litigants usually rely on section 7 and common law fairness, though it survives alongside them.

#141 · Triggers and Content of Procedural Fairness

Why does the content of procedural fairness vary from case to case?

Answer

Because fairness is flexible and context-specific. Baker provides non-exhaustive factors to set the content of the duty. Trap: the factors determine content once a duty exists and do not determine the standard of review.

#142 · Triggers and Content of Procedural Fairness

List the five Baker factors used to determine the content of procedural fairness.

Answer

The nature of the decision and process, the nature of the statutory scheme, the importance of the decision to the individual, legitimate expectations, and the choices of procedure made by the agency itself. The list is not exhaustive.

#143 · Triggers and Content of Procedural Fairness

How does the importance of the decision to the individual affect the content of fairness?

Answer

The more important the decision to the person's life, the greater the procedural protection required. Deportation of a parent affecting children is a high-stakes example, which Baker treated as demanding careful, reasoned consideration.

#144 · Triggers and Content of Procedural Fairness

In Baker, what role does legitimate expectation play and what is its limit?

Answer

It is one of the five Baker content factors: a clear promise or practice can require a particular procedure. It never requires a specific substantive result, and the representation must be clear, unambiguous and unqualified.

#145 · Triggers and Content of Procedural Fairness

What weight do courts give an agency's own choice of procedure under Baker?

Answer

Considerable respect, especially where the statute leaves the agency to choose its own procedures or it has particular expertise. The choice is a factor, not a trump, and cannot excuse a fundamentally unfair process.

#146 · Triggers and Content of Procedural Fairness

Under Baker, how does the absence of an appeal right affect the content of fairness?

Answer

Greater procedural protection is generally required where the decision is final and no appeal is provided. Reason: the first decision is the only chance to be heard and correct errors.

#147 · Triggers and Content of Procedural Fairness

How does the role of a decision within a scheme affect fairness, for example investigation versus final determination?

Answer

Preliminary or investigative steps that decide no rights attract less fairness than final determinations of rights. Trap: an investigative step may still demand more if it effectively decides the outcome or has serious consequences.

#148 · Triggers and Content of Procedural Fairness

Does the existence of an internal appeal mean a party must accept a minimal hearing at first instance?

Answer

Not necessarily. An appeal is a factor that may lower first-instance requirements, but it does not automatically cure unfairness, particularly if the appeal is limited, discretionary or not a true rehearing.

#149 · Triggers and Content of Procedural Fairness

When a statute sets out detailed procedures, how does that affect the Baker factor on the statutory scheme?

Answer

Detailed statutory procedures weigh against implying further procedural rights, since the legislature has chosen how to be fair. Trap: the common law still fills gaps if the statutory process leaves a fundamental unfairness.

#150 · Triggers and Content of Procedural Fairness

In Baker, did procedural fairness require an oral hearing for the humanitarian and compassionate application?

Answer

No. The Court held that a full oral hearing was not necessary, since written submissions gave a meaningful opportunity to be heard. Fairness required the decision-maker to consider the person's views fully and fairly.

#151 · Triggers and Content of Procedural Fairness

In Baker, how does the legitimate expectations factor affect the content of the duty of procedural fairness?

Answer

If a person has a legitimate expectation of a particular procedure, fairness may require that procedure. If the expectation is of a result, no such right arises. The factor shapes procedural content only, not substantive outcomes.

#152 · Triggers and Content of Procedural Fairness

What must a government representation look like to ground a legitimate expectation (Mavi)?

Answer

It must be clear, unambiguous and unqualified, whether by words or conduct, and made by someone with authority. Vague or qualified statements, or general policy hopes, will not create an expectation that triggers extra procedure.

#153 · Triggers and Content of Procedural Fairness

Can a legitimate expectation of a procedure override a clear statutory procedure or a legislative duty?

Answer

No. The doctrine cannot fetter a decision maker's statutory discretion or conflict with statutory duties, and it does not bind the legislature. It adds to fairness only where the statute leaves room for it.

#154 · Triggers and Content of Procedural Fairness

Does legitimate expectations give a Canadian applicant a right to a substantive outcome, such as a particular benefit?

Answer

Generally no. In Canada the doctrine is procedural: it can require notice, a hearing or consultation, but it does not compel the promised result. Exam trap: do not import the broader substantive English doctrine.

#155 · Triggers and Content of Procedural Fairness

Does reliance on a representation have to be shown for a legitimate expectation to arise?

Answer

Detrimental reliance is not an element, but the person must show the representation was one they could reasonably rely on and that they did expect the procedure. Past practice or published policy can count as the source.

#156 · Triggers and Content of Procedural Fairness

What does the right to notice require before an administrative body decides a matter affecting rights?

Answer

The person must be told of the case to be met, the decision to be made and any hearing, early enough to prepare a meaningful response. The detail required varies with the Baker factors.

#157 · Triggers and Content of Procedural Fairness

Is a decision maker obliged to disclose information it relies on, such as an officer's report, before deciding?

Answer

Yes, where the person cannot respond meaningfully without it. Fairness generally requires disclosure of the evidence and materials the decision maker will consider, subject to valid privilege or statutory limits.

#158 · Triggers and Content of Procedural Fairness

What is the usual effect of inadequate notice of the case to be met, if the hearing nonetheless went ahead?

Answer

A breach of procedural fairness, ordinarily leading to the decision being set aside, because denying a fair chance to respond is a fundamental defect. Prejudice need not be proven in detail.

#159 · Triggers and Content of Procedural Fairness

Can a decision maker rely on a new ground or allegation not mentioned in the notice given to the person?

Answer

Not without giving fresh notice and a chance to respond. A person cannot be fairly decided against on a case they were never told they had to meet, even if the original notice was adequate.

#160 · Triggers and Content of Procedural Fairness

Does a person have a right to notice of an administrative decision that is merely preliminary or investigative?

Answer

Often less. If the body only investigates or recommends and does not decide rights, the duty is lower or absent. Fairness is assessed at the stage where the person's rights or interests are determined.

#161 · Triggers and Content of Procedural Fairness

Does procedural fairness always require an oral hearing?

Answer

No. The Baker factors decide the form. Written submissions can suffice, particularly where the decision turns on documents or law. The right to be heard is a right to a meaningful opportunity, not a courtroom.

#162 · Triggers and Content of Procedural Fairness

When does an oral hearing become necessary under Singh and Baker?

Answer

Where credibility is in issue and the decision carries serious consequences, written submissions alone are generally inadequate, because the decision maker must assess the person directly. Seriousness and credibility together point strongly to an oral hearing.

#163 · Triggers and Content of Procedural Fairness

A statute is silent on hearing format. Who decides whether it is oral or written?

Answer

The tribunal controls its own procedure, but within the limits of fairness. A court reviewing a challenge decides whether the chosen format met the fairness required in the context, not whether it was the best format.

#164 · Triggers and Content of Procedural Fairness

Can a statute or the enabling regulations override a person's claim to an oral hearing?

Answer

Yes, within constitutional limits. A clear statutory procedure binds, but common law fairness fills gaps and cannot be ousted by silence. Charter s 7 can require more where life, liberty or security is engaged.

#165 · Triggers and Content of Procedural Fairness

Why might paper-only decisions be acceptable for most routine benefit or licensing renewals?

Answer

The stakes are lower, the issues are documentary and the statute may contemplate efficiency. Under the Baker factors the nature of the decision and its importance to the individual weigh toward a lighter procedure.

#166 · Triggers and Content of Procedural Fairness

Is there a general right to be represented by counsel at every administrative proceeding?

Answer

No. The right to counsel depends on context. Where a person's interests are serious and the matter is complex, fairness may require permitting counsel, but it does not always require the state to supply one.

#167 · Triggers and Content of Procedural Fairness

Which factors decide if fairness requires state-funded counsel before an administrative body?

Answer

The seriousness of the interests at stake, the complexity of the proceedings and the person's capacity to represent themselves. G(J) required it under s 7 in a child custody case, a rare, serious context.

#168 · Triggers and Content of Procedural Fairness

Does Dehghani support a right to counsel at a routine immigration or border examination?

Answer

No. Dehghani held there was no s 7 right to counsel at a secondary examination at the border, which was routine in nature and not adversarial. The right turns on the nature of the process.

#169 · Triggers and Content of Procedural Fairness

Can a tribunal allow an agent or non-lawyer representative instead of counsel?

Answer

Yes, if the statute permits. Fairness requires an opportunity to be assisted adequately, not necessarily by a lawyer. Statutory schemes often authorize paralegals or agents, and the tribunal may regulate representatives.

#170 · Triggers and Content of Procedural Fairness

What is the effect if a tribunal refuses an adjournment so a person can retain counsel?

Answer

It may breach fairness if the person's need for counsel was reasonable given the stakes and complexity, and the person acted diligently. A court weighs this against the tribunal's interest in timely proceedings.

#171 · Triggers and Content of Procedural Fairness

When does Baker say the duty to give written reasons arises?

Answer

Where the decision has important significance for the individual, there is a statutory right of appeal, or other circumstances make reasons appropriate. Reasons are not always required, so check the Baker factors.

#172 · Triggers and Content of Procedural Fairness

Can notes of an officer constitute adequate reasons under Baker?

Answer

Yes. Baker accepted an immigration officer's notes as reasons, since fairness requires some explanation, not a formal judgment. Under Vavilov, courts also read the record to understand the logic of the decision.

#173 · Triggers and Content of Procedural Fairness

Is the adequacy of reasons a stand-alone ground of judicial review after Newfoundland Nurses?

Answer

No. Inadequacy of reasons is not a free-standing basis to quash. Reasons are read with the record and outcome, and the issue is whether the decision as a whole is reasonable.

#174 · Triggers and Content of Procedural Fairness

Under Vavilov, how does the duty to give reasons connect to reasonableness review?

Answer

Where reasons are required and given, the reviewing court examines them for justification, transparency and intelligibility. Where reasons are required but absent, that is a fairness failure, assessed separately from reasonableness.

#175 · Triggers and Content of Procedural Fairness

Which standard does a court use to check whether the duty to give reasons was breached?

Answer

It asks whether the process was fair, with no deference to the decision maker. Procedural fairness issues, including whether reasons were owed, are assessed by the court itself, not under Vavilov standards.

#176 · Triggers and Content of Procedural Fairness

What did Blencoe say about when delay in an administrative proceeding will breach procedural fairness?

Answer

Delay must be unacceptable and must have caused significant prejudice to the fairness of the hearing itself, such as lost witnesses, faded memories or lost evidence. Stress, stigma and reputational harm alone do not suffice.

#177 · Triggers and Content of Procedural Fairness

Under Blencoe, when can an administrative proceeding be stayed for delay that does not impair the fairness of the hearing?

Answer

Only where the delay is inordinate, directly causes significant psychological or other prejudice, and is so oppressive that it amounts to an abuse of process that would bring the administrative system into disrepute. This is a rare remedy.

#178 · Triggers and Content of Procedural Fairness

What three-part framework did Abrametz v Law Society of Saskatchewan set out for a stay based on delay?

Answer

The delay must be inordinate, it must directly cause significant prejudice, and it must amount to an abuse of process. Inordinate delay alone is not enough, and the assessment is contextual with no fixed time limit.

#179 · Triggers and Content of Procedural Fairness

What did Ocean Port hold about tribunal independence?

Answer

Tribunal independence is governed by the enabling statute, so a legislature may choose lower guarantees than courts enjoy unless constitutional limits apply. The common law does not impose judicial-level independence where the statute clearly provides otherwise.

#180 · Triggers and Content of Procedural Fairness

A party asks a tribunal for an adjournment and is refused. How does a reviewing court approach the refusal?

Answer

Tribunals control their own procedure and have discretion over adjournments. The refusal breaches fairness only if, in the context, it deprived the party of a meaningful opportunity to know the case and respond to it.

#181 · Triggers and Content of Procedural Fairness

How does an application for judicial review differ from a statutory appeal?

Answer

Judicial review is the courts' discretionary supervisory power over legality and reasonableness and needs no appeal right. A statutory appeal exists only if the enabling statute creates it, and the statute sets who may appeal, the grounds and the appellate standards.

#182 · Triggers and Content of Procedural Fairness

When did New Brunswick (Minister of Health) v G(J) require state-funded counsel, and why does it not create a general rule?

Answer

A parent facing state-initiated child custody proceedings had a s 7 right to funded counsel because the stakes and complexity made a fair hearing impossible without it. It is limited to serious s 7 situations.

#183 · Triggers and Content of Procedural Fairness

Can an administrative tribunal order costs or participant funding without an express statutory power?

Answer

Generally no. Costs and funding are not inherent powers of a tribunal, which is a creature of statute. The power must be found in the enabling statute or in clearly necessary implication from it.

#184 · Triggers and Content of Procedural Fairness

What is a tribunal's duty toward a self-represented party in a hearing?

Answer

It should explain the process and give reasonable help so the party can participate meaningfully, without abandoning its impartiality or becoming that party's advocate. Fairness is assessed in light of the party's circumstances.

#185 · Triggers and Content of Procedural Fairness

What can the Federal Court order under s 18.1(3) of the Federal Courts Act when it grants judicial review?

Answer

It may order a federal board to do an act it unlawfully failed or refused to do, or to act without delay, and may declare invalid, set aside, or set aside and remit a decision for redetermination in accordance with its directions.

#186 · Triggers and Content of Procedural Fairness

What is the test for a reasonable apprehension of bias, as framed in Committee for Justice and Liberty v National Energy Board?

Answer

Would an informed person, viewing the matter realistically and practically and having thought it through, conclude that the decision-maker, consciously or unconsciously, would more likely than not decide unfairly?

#187 · Triggers and Content of Procedural Fairness

Who is the reasonable person in the test for a reasonable apprehension of bias?

Answer

A reasonable, informed and right-minded observer who knows all the relevant circumstances, including the traditions of integrity of the decision-maker's office. This is not a very sensitive or scrupulous person, and the threshold is high.

#188 · Triggers and Content of Procedural Fairness

What presumption applies when bias is alleged against a decision-maker, and who bears the burden?

Answer

Decision-makers are presumed impartial. The party alleging bias must show it with a serious allegation backed by cogent evidence, not mere suspicion. The Wewaykum case describes the threshold as high.

#189 · Triggers and Content of Procedural Fairness

How does the standard for assessing bias vary between adjudicative and policy-oriented decision-makers under Newfoundland Telephone?

Answer

The standard varies with the body's function. Court-like adjudicators are held close to judicial impartiality. Bodies with policy or legislative functions are only barred by a closed mind, meaning a prejudgment that cannot be shifted.

#190 · Triggers and Content of Procedural Fairness

A party notices a possible conflict of interest at the start of a hearing but raises it only after losing. What follows?

Answer

Bias must be raised at the earliest practicable opportunity. A party who knows of the ground and proceeds without objection may be taken to have waived the objection and cannot rely on it after an adverse result.

#191 · Triggers and Content of Procedural Fairness

What was the significance of the pre-hearing public comments by a board member in Newfoundland Telephone v Board of Commissioners of Public Utilities?

Answer

The member publicly criticized the utility's executive compensation before the hearing, giving a reasonable apprehension of bias. The comments showed a closed mind, which disqualified him even though the board's role had a policy dimension.

#192 · Triggers and Content of Procedural Fairness

In Baker, what in the immigration officer's notes gave rise to a reasonable apprehension of bias?

Answer

The notes, adopted as the reasons, used language reflecting stereotypes about the applicant's mental illness, background and family. A reasonable observer would conclude the decision was not made impartially.

#193 · Triggers and Content of Procedural Fairness

Can a decision-maker's strongly worded views expressed before a hearing disqualify them?

Answer

Only if they show a closed mind, meaning the member cannot be persuaded by the evidence. Holding general or even firm opinions on policy is not enough if the member remains open to argument on the facts.

#194 · Triggers and Content of Procedural Fairness

When might a decision-maker's conduct during a hearing, such as hostile questioning, give rise to a reasonable apprehension of bias?

Answer

Where interventions go beyond clarifying evidence and show hostility, prejudgment or favouritism toward one side. The conduct is viewed as a whole in context, and vigorous questioning alone does not establish bias.

#195 · Triggers and Content of Procedural Fairness

Does a tribunal member's prior decision against a party in another matter show bias?

Answer

Not by itself. Ruling against a party, or deciding similar issues in earlier cases, is part of ordinary adjudication. Bias requires something more, such as a comment showing prejudgment or a personal interest in the outcome.

#196 · Triggers and Content of Procedural Fairness

Can a statute authorize a structure that would otherwise create apparent bias at common law?

Answer

Yes. Parliament or a legislature may displace common law fairness through clear statutory language. Ocean Port Hotel held that explicit enabling legislation can override the usual requirements of institutional independence.

#197 · Triggers and Content of Procedural Fairness

What did Ocean Port Hotel v British Columbia hold about tribunal members who serve at pleasure and lack security of tenure?

Answer

Absent constitutional or quasi-constitutional limits, a statute may validly create a tribunal whose members serve at pleasure. Lack of tenure does not by itself give rise to a reasonable apprehension of bias where the statute clearly authorizes it.

#198 · Triggers and Content of Procedural Fairness

What limits remain on statutory authorization of apparent bias after Ocean Port Hotel?

Answer

Constitutional requirements, such as Charter s 7 or the unwritten principle of judicial independence for courts, and quasi-constitutional human rights laws can still require impartiality. Clear statutory language is also needed to oust the common law.

#199 · Triggers and Content of Procedural Fairness

Does combining investigative and adjudicative functions in one statutory body breach the rule against bias?

Answer

Not automatically. Where the statute clearly authorizes the structure, as in Brosseau v Alberta Securities Commission, it is permitted. The challenge fails unless the particular decision-maker's conduct shows actual bias or closed-mindedness.

#200 · Triggers and Content of Procedural Fairness

What is the doctrine of necessity in relation to bias, and when does it apply?

Answer

A disqualified decision-maker may still decide a matter if no other person is legally empowered to do so and failure to decide would defeat the statutory scheme. It is an exception applied narrowly.

#201 · Triggers and Content of Procedural Fairness

What did the Supreme Court hold in Ocean Port Hotel about tribunal members who serve at pleasure and lack security of tenure?

Answer

Absent a constitutional or quasi-constitutional guarantee, a statute may validly create a tribunal whose members hold office at pleasure. Administrative tribunals are not held to the court-level independence standard, so lack of tenure alone is not a breach of fairness.

#202 · Triggers and Content of Procedural Fairness

Do the Valente guarantees of judicial independence apply as a constitutional requirement to administrative tribunals?

Answer

No, they are a court standard. Tribunals sit within the executive, so the legislature may choose their degree of independence. Valente-style guarantees apply only where a constitutional or quasi-constitutional instrument requires them for that body.

#203 · Triggers and Content of Procedural Fairness

When can constitutional or quasi-constitutional independence guarantees be demanded of a tribunal despite Ocean Port?

Answer

Where the proceeding engages a protected right, such as Charter s 7 interests, or a quasi-constitutional bill of rights that expressly guarantees an independent tribunal. Without such a source, the enabling statute sets the level of independence.

#204 · Triggers and Content of Procedural Fairness

What is the order of authority when assessing a challenge to a tribunal's independence?

Answer

Constitutional and quasi-constitutional guarantees come first, then clear statutory language, then common law fairness as a gap-filler. Common law cannot override an express statutory scheme, which is the main Ocean Port trap.

#205 · Triggers and Content of Procedural Fairness

What test governs a claim of reasonable apprehension of bias against an individual tribunal member?

Answer

Would an informed person, viewing the matter realistically and practically and having thought it through, conclude the decision-maker would not decide fairly. The threshold is high, and the presumption of impartiality is displaced only by cogent evidence.

#206 · Triggers and Content of Procedural Fairness

What did Consolidated-Bathurst decide about a full-board meeting held to discuss a decision after a panel hearing?

Answer

Consultation among tribunal colleagues is permitted so long as it does not impair the independence of the deciding members. Institutional decision-making promotes consistency, and members who heard the case must still reach their own decision.

#207 · Triggers and Content of Procedural Fairness

Why does the rule that he who decides must hear give way to institutional decision-making in tribunals?

Answer

Large bodies need consistency in policy and law, so members who did not hear the evidence may be consulted. The trade-off is that the consultation must not become a way for non-hearing members to decide the case.

#208 · Triggers and Content of Procedural Fairness

What are the limits on consultation within a tribunal after Consolidated-Bathurst and Tremblay?

Answer

Discussion may canvass policy and law, but not the credibility of witnesses or the evidence, and no member may be pressured to change their view. Members who heard the case keep the final decision.

#209 · Triggers and Content of Procedural Fairness

In Ellis-Don, how far can a court inquire into a tribunal's internal deliberations?

Answer

Only minimally. Deliberative secrecy protects the process, so a court will not probe how members reached a decision absent a clear indication of improper conduct. A presumption of regularity applies to tribunal decision-making.

#210 · Triggers and Content of Procedural Fairness

What must a tribunal do if consultation or deliberation raises a new issue not argued at the hearing?

Answer

It must give the parties notice and a chance to respond before deciding on that ground. Consultation that introduces new facts or a new legal basis, without disclosure, breaches the audi alteram partem rule.

#211 · Triggers and Content of Procedural Fairness

Is a party entitled to attend a tribunal's full-board meeting discussing its case?

Answer

No. Internal policy discussion among members need not be open to parties. Fairness is breached only if the meeting brings in new evidence or issues the parties could not answer, or erodes the panel's independent judgment.

#212 · Triggers and Content of Procedural Fairness

Does a tribunal need a formal rule to hold a full-board meeting without new evidence, under the Consolidated-Bathurst line?

Answer

No. The practice is lawful if it stays within permitted limits and the decision-makers remain independent. A formal rule helps transparency, but its absence is not itself a breach of fairness.

#213 · Triggers and Content of Procedural Fairness

Can a full-board meeting vote bind the panel that heard the evidence?

Answer

No. A binding vote would remove the decision from the members who heard the case and breach the independence of the panel. The meeting may only inform the panel's own reasoning, not command the result.

#214 · Triggers and Content of Procedural Fairness

What did Harelkin v University of Regina decide about curing a procedural defect at first instance?

Answer

A full appeal de novo with a fair hearing can cure an earlier unfair process, and the court may refuse judicial review as a discretionary matter. Cure depends on how complete and adequate the later proceeding is.

#215 · Triggers and Content of Procedural Fairness

Which factors decide whether an appeal cures a breach of fairness at first instance?

Answer

The adequacy of the appeal process: whether it is a full rehearing, its convenience and speed, the relief it can grant, the seriousness of the defect, and the expertise of the appeal body. A narrow record review rarely cures.

#216 · Triggers and Content of Procedural Fairness

Why might an appeal limited to the record fail to cure a denial of the right to be heard?

Answer

A paper appeal cannot supply the hearing the party never received, such as testimony, cross-examination or oral argument. Cure requires the later process to give the very opportunity that was denied.

#217 · Triggers and Content of Procedural Fairness

What is the general rule on seeking judicial review before exhausting a statutory appeal or internal remedy?

Answer

Courts will not hear judicial review while an adequate alternative remedy remains available, except in exceptional circumstances. Raising a fairness breach does not itself excuse bypassing the appeal route (C.B. Powell v CBSA).

#218 · Triggers and Content of Procedural Fairness

After Mobil Oil, when may a court refuse relief despite a proven breach of procedural fairness?

Answer

Only in rare cases where the outcome was inevitable and the breach made no practical difference. Relief is discretionary, but courts are reluctant to say a hearing would have been futile, since the right to be heard has value itself.

#219 · Triggers and Content of Procedural Fairness

Why does a decision by a biased decision-maker generally resist cure by a later appeal?

Answer

Bias taints the whole process from the start, so the first decision is treated as void and cannot be ratified. A fresh hearing before an unbiased decision-maker is the usual remedy, not an appeal on the tainted record.

#220 · Triggers and Content of Procedural Fairness

How does the stake of losing a professional licence affect the content of procedural fairness?

Answer

It raises it. Under the Baker factors, the importance of the decision to the individual calls for notice, disclosure, a hearing and written reasons. Loss of the right to practise is a serious consequence.

#221 · Triggers and Content of Procedural Fairness

Does the Stinchcombe criminal disclosure standard apply to professional discipline hearings?

Answer

No. Fairness requires disclosure of the case to be met and relevant material the regulator relies on, but not the full criminal standard. The scope depends on context and the stakes.

#222 · Triggers and Content of Procedural Fairness

Is it a breach of fairness for a regulator's investigating committee and its discipline panel to sit within the same body?

Answer

Not if the statute authorizes that structure, as Brosseau shows. Institutional overlap is acceptable when roles are separated, but the same individuals investigating and adjudicating the same case raises real bias concerns.

#223 · Triggers and Content of Procedural Fairness

When does delay in a professional discipline proceeding amount to an abuse of process under Blencoe?

Answer

Only if the delay is inordinate and causes significant prejudice that impairs hearing fairness or brings the administration of justice into disrepute. Stress, stigma and reputational harm alone are not enough.

#224 · Triggers and Content of Procedural Fairness

Does a professional regulatory proceeding that threatens livelihood or reputation usually engage Charter s 7?

Answer

Generally no. Blencoe held that stigma and stress from regulatory proceedings do not ordinarily engage s 7 security of the person. Administrative fairness duties apply instead, and Charter s 7 is reserved for liberty or serious state-imposed harm.

#225 · Triggers and Content of Procedural Fairness

Can a discipline panel admit hearsay without breaching procedural fairness?

Answer

Yes, if the statute does not forbid it and the evidence is reliable and fairly tested. The party must be able to respond to it. Weight, not strict admissibility, is the usual concern in administrative hearings.

#226 · Triggers and Content of Procedural Fairness

In a social assistance or benefit decision, which Baker factor most often pushes fairness toward fuller procedures?

Answer

The importance of the decision to the individual. Where a benefit affects basic subsistence or livelihood, the content of the duty rises, so notice, disclosure and a meaningful chance to respond are more likely required.

#227 · Triggers and Content of Procedural Fairness

Does the duty of fairness apply to a decision on a mere privilege, such as a discretionary benefit?

Answer

Yes. The old right versus privilege distinction is gone. A general duty of fairness applies to administrative decisions affecting rights, privileges or interests of an individual; only its content varies with context.

#228 · Triggers and Content of Procedural Fairness

A regulator refuses to renew a professional licence. How does that differ from a first-time application for fairness purposes?

Answer

Loss of an existing licence affects an established livelihood, so it usually attracts stronger protections than refusing a first application. Trap: the Baker factors still govern, so the contrast is one of degree, not a fixed rule.

#229 · Triggers and Content of Procedural Fairness

Can a statute that gives a benefits decision-maker a broad discretion exclude the duty of fairness?

Answer

Only by clear statutory language or necessary implication. Silence on procedure does not oust the duty, and the common law fills gaps. A broad discretion informs the content of fairness; it does not remove it.

#230 · Triggers and Content of Procedural Fairness

In a pension or benefit review, what does a claimant generally have to receive before the decision-maker relies on adverse material?

Answer

Disclosure of the substance of the case to meet, and a chance to respond. The extent of disclosure is contextual, but undisclosed material that influences the outcome is a classic breach of procedural fairness.

#231 · Triggers and Content of Procedural Fairness

Does fairness require an oral hearing in an expedited or summary process?

Answer

Not necessarily. Baker held that an oral hearing is not always required. Written submissions can suffice unless the Baker factors, such as credibility disputes or high stakes, make a live hearing necessary.

#232 · Triggers and Content of Procedural Fairness

When does credibility call for an oral hearing, including under s 7 of the Charter?

Answer

Where a serious issue of credibility is central and the decision affects life, liberty or security of the person, Singh indicates written submissions alone will not do. The decision-maker must hear the person directly.

#233 · Triggers and Content of Procedural Fairness

Can a tribunal decide to hold a hearing electronically or by video without breaching fairness?

Answer

Yes, if its statute or procedural rules permit and the format still gives a meaningful chance to be heard. A party may challenge it where technology, access or credibility issues make the format unfair in context.

#234 · Triggers and Content of Procedural Fairness

How do courts review a tribunal's choice of procedure, such as a summary process, under Vavilov?

Answer

Procedural fairness is not reviewed for reasonableness or correctness. The court asks whether the procedure was fair in all the circumstances, giving no deference but respecting the tribunal's procedural choices where fair.

#235 · Triggers and Content of Procedural Fairness

Why does speed or efficiency alone not justify cutting procedural protections in a summary process?

Answer

Efficiency is a legitimate consideration, and the tribunal's own choice of procedure is respected under Baker. But it cannot erase the minimum core: notice, a chance to respond and an impartial decision-maker.

#236 · Triggers and Content of Procedural Fairness

Is the Crown's duty to consult Indigenous peoples the same thing as procedural fairness?

Answer

No. The duty to consult comes from the honour of the Crown and s 35 (Haida Nation). It is distinct from the common law duty of fairness, though both concern process before a decision affecting interests.

#237 · Triggers and Content of Procedural Fairness

What triggers the Crown's duty to consult an Indigenous community under Haida Nation?

Answer

Crown knowledge, real or constructive, of a potential Aboriginal or treaty right, and contemplated Crown conduct that might adversely affect it. The depth of consultation then varies with the strength of the claim and the seriousness of impact.

#238 · Triggers and Content of Procedural Fairness

Does the duty to consult give an Indigenous community a veto over a project?

Answer

No. Consultation requires good faith and meaningful dialogue, and sometimes accommodation, but not agreement. Ktunaxa Nation confirmed there is no veto, and that the duty addresses process, not a guaranteed outcome.

#239 · Triggers and Content of Procedural Fairness

Can a regulatory hearing process satisfy the Crown's duty to consult, per Clyde River?

Answer

Yes, the Crown may rely on a regulatory agency's process, but only if the agency's process gives adequate notice and meaningful engagement. Otherwise the Crown must make up the shortfall itself, or the approval is open to challenge.

#240 · Triggers and Content of Procedural Fairness

Does the duty to consult apply when Parliament or a legislature passes a bill?

Answer

No. Mikisew Cree (2018) held the duty is not triggered by the law-making process. It can apply to executive or administrative conduct, such as a permit or approval, that may adversely affect Indigenous rights.

#241 · Triggers and Content of Procedural Fairness

In Mikisew Cree (2005), what did the Supreme Court say about the content of consultation under a treaty with taking-up clauses?

Answer

Even where the Crown may take up treaty land, it must consult and accommodate where its plans would adversely affect treaty hunting and trapping rights. The consultation required was at the lower end of the spectrum there.

#242 · Triggers and Content of Procedural Fairness

Which case is the source of the reasonable apprehension of bias test, and who is the 'informed person'?

Answer

Committee for Justice and Liberty v National Energy Board, [1978] 1 SCR 369. The test asks how a reasonable, informed person, viewing the matter realistically and practically, would see it, and the threshold is high.

#243 · Triggers and Content of Procedural Fairness

What is the difference between individual bias and institutional bias or lack of independence?

Answer

Individual bias concerns a member's conduct or connections in a case. Institutional concerns relate to the tribunal's structure, such as security of tenure and financial security, assessed from the view of a reasonable, informed person.

#244 · Triggers and Content of Procedural Fairness

Can legislation override the common law requirements of tribunal independence, per Ocean Port Hotel?

Answer

Yes. Unlike courts, administrative tribunals do not enjoy a constitutionally guaranteed level of independence under the unwritten principle. Clear legislation can set a lower level, so the statute is the starting point.

#245 · Triggers and Content of Procedural Fairness

A party suspects bias but says nothing until after losing. What is the usual consequence?

Answer

The right to object can be waived. Bias must be raised at the earliest practicable opportunity once the facts are known (Wewaykum). Silence while gambling on the result weighs heavily against later relief.

#246 · Triggers and Content of Procedural Fairness

What is the usual judicial review remedy for a decision tainted by a reasonable apprehension of bias?

Answer

The decision is set aside and the matter sent back to a differently constituted decision-maker. Bias is a breach of natural justice, so the court does not ask whether the outcome would have been the same.

#247 · Triggers and Content of Procedural Fairness

May a tribunal that investigates a matter also adjudicate it without breaching fairness?

Answer

Not automatically. Overlap of functions is permitted where the statute authorizes it, but a member who investigated cannot sit if that creates a reasonable apprehension of bias in the circumstances; the structure is assessed in context.

#248 · Triggers and Content of Procedural Fairness

A tribunal decides on a ground neither party raised at the hearing. What does fairness require?

Answer

Notice of the new issue and a fair chance to respond before deciding on it. Deciding on an unraised ground without that opportunity is a classic breach, even if the ground arises from the record.

#249 · Triggers and Content of Procedural Fairness

Can a decision-maker rely on extrinsic evidence not tendered at the hearing?

Answer

Only if the affected party is told of it and can respond. Relying on undisclosed outside material that affects the outcome breaches fairness (Kane), unless it is of a kind the tribunal may notice and the parties know of.

#250 · Triggers and Content of Procedural Fairness

Why is 'the result would have been the same' a weak answer to a proven denial of procedural fairness?

Answer

The right to a fair process has independent value, so courts rarely accept futility. Relief stays discretionary, but is withheld only where the outcome was truly inevitable (Mobil Oil).

#251 · Standard of Review (Vavilov)

What is the starting point for choosing the standard of review of an administrative decision under Vavilov?

Answer

A presumption that reasonableness applies in every case. Courts depart from it only where legislative intent or the rule of law clearly requires a different standard. Exam trap: do not start by asking about expertise or category.

#252 · Standard of Review (Vavilov)

Why does Vavilov presume reasonableness review?

Answer

Because the legislature chose to delegate decision-making to an administrative body rather than a court. Respecting that choice, and the institutional design behind it, is the main reason courts defer on the merits.

#253 · Standard of Review (Vavilov)

Does the reasonableness presumption apply even when the decision-maker interprets its own home statute?

Answer

Yes. Vavilov applies the presumption to all administrative decisions, including statutory interpretation of a home statute, and it ended the old practice of sorting issues into categories first.

#254 · Standard of Review (Vavilov)

Is reasonableness review under Vavilov a more relaxed, deferential standard than the old Dunsmuir version?

Answer

No. It is a robust form of review that examines both the reasoning process and the outcome, and it expects reasons that justify the decision to those affected. Deference is not abdication.

#255 · Standard of Review (Vavilov)

Which Supreme Court of Canada decision now sets the framework for choosing the standard of review of administrative decisions?

Answer

Canada (Minister of Citizenship and Immigration) v Vavilov, 2019 SCC 65, which revised the Dunsmuir framework. Cases that applied the contextual factors or the old categories must be reread in that light.

#256 · Standard of Review (Vavilov)

A statute says the Minister's decision on an application is to be reviewed on a correctness standard. Which standard applies?

Answer

Correctness. Where the legislature prescribes the standard of review, courts must respect it, and that direction rebuts the presumption of reasonableness. The expressed intent controls over default rules.

#257 · Standard of Review (Vavilov)

Can a legislature prescribe a standard of review for its tribunals without limit?

Answer

No. It can choose a standard, but it cannot oust judicial review altogether, because the rule of law requires courts to police the legality of state action. Some correctness categories also stay constitutionally protected.

#258 · Standard of Review (Vavilov)

Does a privative clause rebut the presumption of reasonableness or call for a stricter standard under Vavilov?

Answer

No. Reasonableness already applies by default, so a privative clause adds nothing to the standard. It signals the legislature's choice of review mechanism but cannot exclude review for legality.

#259 · Standard of Review (Vavilov)

If a statute gives a right to appeal an administrative decision to a court, what standards govern?

Answer

Appellate standards: the legislature has signalled that the court is to act as an appellate court. Correctness applies to questions of law, and palpable and overriding error applies to facts and mixed fact and law.

#260 · Standard of Review (Vavilov)

How does Vavilov treat a statutory appeal as compared with an application for judicial review?

Answer

A statutory appeal is a legislative direction that rebuts the reasonableness presumption. Judicial review is the default, supervisory route, so the standard turns on whether the statute creates a true appeal.

#261 · Standard of Review (Vavilov)

What standard applies to a question of law on a statutory appeal from an administrative decision?

Answer

Correctness, following the Housen v Nikolaisen appellate framework. The court decides the legal question for itself and gives no deference to the tribunal's answer.

#262 · Standard of Review (Vavilov)

What standard applies to a question of fact on a statutory appeal from an administrative decision?

Answer

Palpable and overriding error. The appeal court cannot reweigh evidence or substitute its own findings. The error must be obvious and must affect the outcome.

#263 · Standard of Review (Vavilov)

How is a question of mixed fact and law reviewed on a statutory appeal?

Answer

By palpable and overriding error, unless a legal question can be extricated from it. An extricable error of law, such as a wrong legal test, attracts correctness instead.

#264 · Standard of Review (Vavilov)

What is an extricable question of law in the Housen framework?

Answer

A pure legal issue separable from the factual application, such as the wrong legal test or a misreading of a statute. Finding one moves review of that issue from palpable and overriding error to correctness.

#265 · Standard of Review (Vavilov)

Which case supplies the appellate standards that Vavilov borrows for statutory appeals from administrative decisions?

Answer

Housen v Nikolaisen, 2002 SCC 33. Vavilov said the same standards used for appeals from trial courts apply when the legislature creates a true appeal from an administrative decision.

#266 · Standard of Review (Vavilov)

When does a general question of law of central importance to the legal system as a whole attract correctness review?

Answer

When the question has wide-reaching, system-wide implications that need a single, final, consistent answer from the courts. The rule of law requires this, even if the tribunal has a home statute and relevant expertise.

#267 · Standard of Review (Vavilov)

Is a legal question that is important to the parties, or of public interest, enough to call for correctness as a question of central importance?

Answer

No. The question must matter to the legal system as a whole, such as the scope of solicitor-client privilege or Parliamentary privilege. Importance to the parties or the regime alone does not meet the test.

#268 · Standard of Review (Vavilov)

Why is correctness required for general questions of law of central importance to the legal system?

Answer

Because inconsistent answers from different administrative bodies would undermine the rule of law. Courts must supply a uniform answer to fundamental questions that cut across the whole legal system.

#269 · Standard of Review (Vavilov)

A tribunal interprets a provision in its own home statute and the issue is novel and difficult. Does that alone trigger correctness?

Answer

No. Novelty, difficulty or high stakes for the regime does not rebut the presumption. The issue must be a general question of law of central importance to the legal system as a whole.

#270 · Standard of Review (Vavilov)

Is the true question of jurisdiction category from Dunsmuir still good law after Vavilov?

Answer

No. Vavilov abolished it. A tribunal's authority to decide is just an exercise of its statutory powers, reviewed on reasonableness. Only jurisdictional line-drawing between bodies can call for correctness.

#271 · Standard of Review (Vavilov)

Does a tribunal's specialized expertise justify a deferential standard under Vavilov?

Answer

No longer as a stand-alone factor. Expertise is not a basis for rebutting or confirming the presumption. It matters through the institutional setting that explains why reasonableness is the default.

#272 · Standard of Review (Vavilov)

Can an advocate argue that a question is jurisdictional and so reviewable on correctness, relying on Dunsmuir?

Answer

The argument is weak. Vavilov removed the true jurisdictional question category, so it no longer works as a stand-alone ground. A narrower correctness category for jurisdictional boundaries between bodies survives.

#273 · Standard of Review (Vavilov)

What replaced the Dunsmuir contextual factors and standard-of-review analysis for choosing between reasonableness and correctness?

Answer

A simplified approach: presume reasonableness, then ask whether legislative intent or the rule of law rebuts it. Factors such as the privative clause, purpose of the tribunal and the nature of the question are no longer weighed.

#274 · Standard of Review (Vavilov)

Which pre-Vavilov decisions on tribunal expertise or home-statute categories should an exam answer treat with caution?

Answer

Dunsmuir-era and Alberta Teachers-era reasoning about categories, factors and jurisdiction. The cases may survive on outcome, but their standard-of-review analysis must be redone under Vavilov's presumption.

#275 · Standard of Review (Vavilov)

What does Vavilov say a reasonable decision must be, and what is the reviewing court's starting focus?

Answer

A reasonable decision is based on internally coherent reasoning and is justified in light of the legal and factual constraints, with transparency and intelligibility. The court starts with the reasons actually given, not its own view of the answer.

#276 · Standard of Review (Vavilov)

On reasonableness review, who bears the burden, and how serious must a flaw be to justify intervention?

Answer

The party challenging the decision must show it is unreasonable. Shortcomings must be sufficiently serious, going to the root of the decision, not superficial or peripheral to the merits; a merely minor misstep does not warrant setting it aside.

#277 · Standard of Review (Vavilov)

Does reasonableness review let the court decide the issue for itself and then compare its answer to the decision?

Answer

No. Reasonableness review is not a de novo analysis. The court does not ask what it would have decided; it asks whether the decision maker's reasoning and outcome are justified, transparent and intelligible.

#278 · Standard of Review (Vavilov)

Is the pre-Vavilov idea of a "range of acceptable outcomes" still the organizing test?

Answer

Dunsmuir's criteria of justification, transparency and intelligibility survive, but Vavilov shifts the focus to the reasoning process and outcome together, reasons first. Asking only whether the result falls in a range, ignoring the reasoning, is the old trap.

#279 · Standard of Review (Vavilov)

Does Vavilov make reasonableness a single uniform level of scrutiny in every case?

Answer

No. Reasonableness is one standard, but its application is context-sensitive. How much constraint the legal and factual context imposes varies, and a decision with heavy consequences for the individual calls for more careful justification.

#280 · Standard of Review (Vavilov)

What is the internal rationality requirement under Vavilov, and what does a reviewing court look for?

Answer

The reasons must show a rational chain of analysis that reaches the conclusion. The court asks whether the reasoning is coherent and rational, looking for a line of analysis that could reasonably lead from the evidence and law to that outcome.

#281 · Standard of Review (Vavilov)

Name the kinds of reasoning flaws Vavilov gives as examples of a decision that lacks internal rationality.

Answer

Examples include circular reasoning, a false dilemma, an unfounded generalization, and an absurd premise. A fundamental gap or unreasoned leap in the analysis can also render the decision untenable, as it breaks the chain from premises to conclusion.

#282 · Standard of Review (Vavilov)

Must reasons be perfect or exhaustive, and may a court hunt line by line for errors?

Answer

No. Reviewing courts read reasons holistically and contextually and do not conduct a line-by-line treasure hunt for error. Imperfect or unpolished reasons are not enough; the flaw must be a significant defect in logic or justification.

#283 · Standard of Review (Vavilov)

May a court uphold an unreasonable decision by writing better reasons that the decision maker could have given?

Answer

No. The court may not fashion its own reasons to bolster a decision it finds deficient, nor look to the outcome alone. Where reasons contain a fundamental gap, the court should not fill it and substitute its own justification.

#284 · Standard of Review (Vavilov)

What if a decision maker gave no formal reasons because none were required? How is reasonableness reviewed?

Answer

The court looks to the record and the surrounding context to discern the rationale and assess whether the outcome is justified. Where no reasons are required, the reviewing court takes the record as a whole into account instead.

#285 · Standard of Review (Vavilov)

How does the governing statutory scheme constrain a decision under reasonableness review?

Answer

The decision must be consistent with the text, context and purpose of the enabling statute. The statutory scheme is a legal constraint on what is reasonable, and a decision outside the authority the legislature conferred cannot be justified, however well written.

#286 · Standard of Review (Vavilov)

Must an administrative decision maker conduct a formal statutory interpretation exercise like a court on a legal question?

Answer

No formalistic exercise is required, but the decision must show the decision maker was alive to the text, context and purpose. The reviewing court asks if the interpretation is one the statute can reasonably bear, not whether it is the court's own.

#287 · Standard of Review (Vavilov)

If the text, context and purpose point to only one reasonable interpretation, what must the decision maker adopt?

Answer

That sole reasonable interpretation. Where the statutory language admits of just one meaning, a decision that adopts another is unreasonable. The decision maker's interpretation must also account for how the provision fits within the overall scheme.

#288 · Standard of Review (Vavilov)

A decision ignores a strong, plain meaning of a provision and gives no explanation. Is that decision likely reasonable?

Answer

Probably not. A decision maker who departs from the apparent meaning of a provision without explaining why leaves the decision unjustified. Vavilov expects the reasons to grapple with the text and a serious contrary reading.

#289 · Standard of Review (Vavilov)

How does a broad statutory grant of discretion affect reasonableness review of the decision?

Answer

A broad grant widens the room for decision, but the exercise is still bound by the statute's purposes and by the legal and factual constraints. Discretion is not a licence for outcomes the scheme cannot support.

#290 · Standard of Review (Vavilov)

May a court reweigh and reassess the evidence on reasonableness review?

Answer

Generally no. Absent exceptional circumstances, the court refrains from reweighing and reassessing the evidence considered by the decision maker. The weighing of evidence is the tribunal's function, and intervention requires more than disagreement with the result.

#291 · Standard of Review (Vavilov)

When can a decision be unreasonable because of how it handled the evidence, despite the no-reweighing rule?

Answer

When the decision maker fundamentally misapprehended the evidence or failed to account for evidence that was before it. A decision must be reasonable in light of the factual constraints, so ignoring central evidence or inventing facts is a defect.

#292 · Standard of Review (Vavilov)

A party argued a central point and the reasons never mention it. What does Vavilov say about the decision?

Answer

Reasons must meaningfully account for the central issues and concerns the parties raised. Failing to address a key argument can show the decision maker was not actually alive to it, and the decision may be unreasonable on that ground.

#293 · Standard of Review (Vavilov)

Does the reasonableness standard let a court overturn a decision because it disagrees with a tribunal's factual findings?

Answer

No. Disagreement with factual findings is not enough. The court intervenes only if the finding rests on a fundamental misapprehension of the record or lacks any rational basis in the evidence; deference to fact finding is the norm.

#294 · Standard of Review (Vavilov)

Are consequences of the decision for the affected individual relevant to reasonableness review?

Answer

Yes. Where a decision has particularly harsh consequences for the individual, the decision maker must justify it with correspondingly more care. The impact on the person is part of the legal and factual context that constrains what is reasonable.

#295 · Standard of Review (Vavilov)

Are administrative decision makers bound by their own past decisions the way courts follow precedent?

Answer

No, not strictly. But past practices and decisions of the same body are part of the legal context. A decision maker should be concerned with consistency, and an unexplained departure from a longstanding practice risks being found unreasonable.

#296 · Standard of Review (Vavilov)

What must a decision maker do when it departs from its own established practice or earlier decisions?

Answer

It must explain the departure in its reasons. Consistency matters because it supports predictability and fairness, so an unexplained break from a settled approach on similar facts undermines the justification of the decision.

#297 · Standard of Review (Vavilov)

How do earlier judicial decisions on the same issue constrain an administrative decision maker under reasonableness?

Answer

Binding precedents on point are part of the legal constraints. A decision that ignores or contradicts a relevant court ruling without justification can be unreasonable, because the decision must be consistent with the governing law as courts have stated it.

#298 · Standard of Review (Vavilov)

Is internal disagreement or inconsistency within a multi-member tribunal itself a ground for quashing a decision?

Answer

Not by itself. Vavilov says institutional mechanisms can address internal inconsistency, and the court asks whether the particular decision is reasonable. Divergent outcomes raise concern when the decision maker fails to justify the difference.

#299 · Standard of Review (Vavilov)

If a court finds a decision unreasonable, what is the usual remedy, and when may it decline to remit?

Answer

The usual remedy is to send the matter back to the decision maker. A court may decide the issue itself only where remitting would be pointless because the outcome is inevitable, or other pressing concerns such as delay and costs make it unwarranted.

#300 · Standard of Review (Vavilov)

Under Vavilov, where does reasonableness review begin when the decision maker has given reasons?

Answer

With the reasons themselves. Reasons are the primary mechanism by which decision makers show their decisions are reasonable, so the court examines the reasoning actually given, not an outcome it would have reached on its own.

#301 · Standard of Review (Vavilov)

May a reviewing court on reasonableness review fashion its own reasons to support a decision it finds flawed?

Answer

No. The court must not substitute its own rationale or conduct its own de novo analysis. It may read reasons in light of the record, but it cannot fill a fundamental gap in the reasoning.

#302 · Standard of Review (Vavilov)

How must reasons be read on reasonableness review, according to Vavilov?

Answer

Holistically and contextually, with the record, not as a line-by-line treasure hunt for error. Reasons need not be perfect or exhaustive, but the reviewing court looks for a transparent, intelligible and justified line of analysis.

#303 · Standard of Review (Vavilov)

What happens on reasonableness review when no reasons were required and none were given?

Answer

The court looks to the record and context to understand the decision and asks whether the outcome is reasonable. The absence of required reasons is a procedural fairness issue, not itself a ground for finding unreasonableness.

#304 · Standard of Review (Vavilov)

Does a decision maker have to respond to every argument raised, and what is the limit on that?

Answer

No, not every point needs a response. But a failure to meaningfully grapple with key issues or central arguments raised by the parties can show the decision maker was not actually alert and sensitive to the matter before it.

#305 · Standard of Review (Vavilov)

When may a court rely on the record to supplement brief or implicit reasons, and what case is often cited for this?

Answer

Reasons and outcome are read together, and the record can show the basis for the result, as in Newfoundland Nurses. This helps where reasons are brief, but not where the reasoning is fundamentally absent.

#306 · Standard of Review (Vavilov)

Why is the adequacy of reasons treated differently under procedural fairness than under reasonableness review?

Answer

Procedural fairness asks whether a duty to give reasons existed and was met (Baker), usually reviewed for fairness. Reasonableness asks whether the reasoning actually given is justified, transparent and intelligible. They are separate questions, so keep them distinct.

#307 · Standard of Review (Vavilov)

In Baker, what counted as the reasons for the decision, and why does that matter to reasonableness review?

Answer

The immigration officer's notes were accepted as the reasons for the decision. It shows reasons need not take a formal shape: informal records can suffice, and a reviewing court reads them as the reasoning.

#308 · Standard of Review (Vavilov)

True or false: Vavilov holds that a decision with no stated reasons is automatically unreasonable.

Answer

False as a rule. Where reasons were not required, the court examines the record and context. The point is that a court cannot supply reasoning that is truly absent where reasons were required and the outcome cannot be traced.

#309 · Standard of Review (Vavilov)

How do constitutional constraints fit into reasonableness review under Vavilov?

Answer

They are among the legal constraints on a decision maker. A decision that fails to respect a constitutional limit cannot be reasonable, though some constitutional questions, like division of powers, still attract correctness review.

#310 · Standard of Review (Vavilov)

Which constitutional questions does Vavilov say attract correctness review rather than reasonableness?

Answer

Constitutional questions of general importance such as the division of powers, the relationship between legislatures and other branches, and the scope of Aboriginal and treaty rights under s 35. This is a rule of law category.

#311 · Standard of Review (Vavilov)

Did Vavilov overrule the Dore framework for decisions that engage Charter protections?

Answer

No. Vavilov left the Dore and Loyola approach in place, so discretionary decisions that limit Charter protections are reviewed for reasonableness through a proportionality analysis, not by correctness or a separate Oakes test.

#312 · Standard of Review (Vavilov)

What are the two steps of the Dore framework for reviewing an administrative decision that engages the Charter?

Answer

First, does the decision engage the Charter by limiting Charter protections? Second, if so, does it reflect a proportionate balancing of those protections with the relevant statutory objectives?

#313 · Standard of Review (Vavilov)

What did Loyola clarify about the Dore framework?

Answer

That the decision maker balances Charter protections, not merely Charter values, against statutory objectives. The question is whether the decision gives effect to the protections as fully as possible, given those objectives.

#314 · Standard of Review (Vavilov)

Why is a formal section 1 Oakes analysis not required when reviewing a discretionary decision under Dore?

Answer

Dore adapts proportionality to the administrative context. The decision maker is not enacting legislation, so the question is whether the balancing was proportionate and reasonable, with deference to the decision maker's expertise.

#315 · Standard of Review (Vavilov)

Does the Dore framework apply when the Charter challenge attacks the validity of a statute itself?

Answer

No. A challenge to the constitutionality of legislation is a direct Charter challenge under the usual s 1 framework. Dore governs discretionary decisions made under a valid statute that engage Charter protections.

#316 · Standard of Review (Vavilov)

Which Charter issue did the Trinity Western University cases at the SCC apply Dore to, in outline?

Answer

Law societies' decisions on whether to accredit a law school with a community covenant, which limited religious freedom and equality interests. The Court asked whether each law society proportionately balanced those protections with its statutory mandate.

#317 · Standard of Review (Vavilov)

A tribunal decides a Charter s 7 issue in a discretionary decision. What standard applies to that review?

Answer

Reasonableness, applied through the Dore proportionality analysis, provided the decision engages a Charter protection and is not a challenge to the statute itself. The question is whether the balancing was proportionate.

#318 · Standard of Review (Vavilov)

Is a discretionary decision that limits a Charter right necessarily unreasonable?

Answer

No. It is reasonable if the limit is proportionate, meaning it minimally impairs the protection in light of the statutory objective. A decision ignoring the protection altogether is the typical unreasonable one.

#319 · Standard of Review (Vavilov)

After finding a decision unreasonable, what is the usual remedy according to Vavilov?

Answer

Remitting the matter to the decision maker for reconsideration with the court's reasons in mind. Respect for the legislature's choice to give decision-making authority to the administrative body makes remittal the usual course.

#320 · Standard of Review (Vavilov)

When may a court decide the matter itself rather than remit it after finding unreasonableness?

Answer

Where it becomes evident that a particular outcome is inevitable, so remitting would serve no useful purpose. Courts also weigh delay, cost, fairness to parties, urgency and the nature of the regime.

#321 · Standard of Review (Vavilov)

In Vavilov itself, why did the SCC not send the matter back to the Registrar?

Answer

The question was one of statutory interpretation with only one reasonable answer: Mr. Vavilov was a Canadian citizen. Remitting would have been pointless, so the Court declared the result directly.

#322 · Standard of Review (Vavilov)

Is the remedy of quashing on judicial review automatic once unreasonableness is found?

Answer

No, judicial review relief is discretionary. A court may refuse relief for reasons such as futility, delay or an alternative remedy. Even when it grants relief, remitting is the default form.

#323 · Standard of Review (Vavilov)

What standard applies to review of a municipal by-law, and what did Catalyst Paper hold?

Answer

Reasonableness, applied with great deference to elected councils. A by-law is set aside only if no reasonable body informed by the relevant factors could have passed it, since councils are democratically accountable.

#324 · Standard of Review (Vavilov)

Why are municipal by-laws reviewed differently from ordinary administrative decisions, and does a council need to give reasons?

Answer

By-laws are legislative acts of elected bodies, presumed valid, and councils need not give reasons. The court looks to the record, such as debates, to see whether the by-law falls within a range of reasonable choices.

#325 · Standard of Review (Vavilov)

On a statutory appeal from a tribunal, which standard applies to a question of mixed fact and law?

Answer

Appellate standards from Housen apply: palpable and overriding error for facts and for mixed fact and law, correctness for questions of law. Vavilov says the reasonableness presumption applies only on judicial review, not on a statutory appeal.

#326 · Standard of Review (Vavilov)

How is an extricable question of law treated on a statutory appeal from a tribunal?

Answer

It is reviewed for correctness, because a legal error can be isolated from the facts. If the legal principle cannot be separated from the factual matrix, the palpable and overriding error standard applies instead.

#327 · Standard of Review (Vavilov)

On judicial review, does the presence of an extricable question of law trigger correctness review?

Answer

No. On judicial review the presumption of reasonableness governs the whole decision, including legal questions, unless a Vavilov exception applies. The extricable-law distinction belongs to appellate standards of review, not to judicial review.

#328 · Standard of Review (Vavilov)

How does a reviewing court treat a decision that applies a legal test to the facts of a case on judicial review?

Answer

It reviews the whole decision for reasonableness. The court asks whether the application of the law to the facts is justified, transparent and intelligible, and does not substitute its own view of the mixed question.

#329 · Standard of Review (Vavilov)

What is the exam trap in choosing between Housen and Vavilov for a mixed question?

Answer

Check first whether the proceeding is a statutory appeal or a judicial review. Appeal means Housen standards, judicial review means Vavilov reasonableness. Citing palpable and overriding error on a judicial review is a common mistake.

#330 · Standard of Review (Vavilov)

Does a tribunal receive deference when interpreting its own home statute under Vavilov?

Answer

Yes, reasonableness is presumed. Expertise is no longer the reason for deference, but the legislature's choice of a tribunal as decision maker is. The interpretation must still be justified in the reasons.

#331 · Standard of Review (Vavilov)

What must a decision maker's reasons show when interpreting its home statute to be reasonable?

Answer

They must reflect a meaningful consideration of the statutory text, context and purpose. A tribunal need not conduct a formal statutory interpretation exercise, but an interpretation that ignores a key textual or contextual constraint is unreasonable.

#332 · Standard of Review (Vavilov)

Is the Dunsmuir category of true questions of jurisdiction still good law?

Answer

No. Vavilov abolished the true jurisdiction category, as it had proved difficult to apply and was inconsistent with the presumption of reasonableness. Jurisdictional questions no longer attract correctness review on that ground.

#333 · Standard of Review (Vavilov)

When does correctness replace reasonableness for a tribunal's legal interpretation under Vavilov?

Answer

For constitutional questions, general questions of law of central importance to the legal system as a whole, and questions about jurisdictional boundaries between two or more administrative bodies. Otherwise, reasonableness applies even to legal questions.

#334 · Standard of Review (Vavilov)

How is a tribunal's interpretation of an external statute reviewed after Vavilov?

Answer

Reasonableness, unless a correctness category applies. The old Dunsmuir rule that external law outside the tribunal's expertise is reviewed for correctness is gone, but the interpretation must still be consistent with the external law's text, context and purpose.

#335 · Standard of Review (Vavilov)

May a reviewing court reweigh the evidence before an administrative decision maker?

Answer

Not absent exceptional circumstances. Vavilov says courts must refrain from reassessing evidence, but a decision that fundamentally misapprehends the evidence or fails to account for it can still be unreasonable.

#336 · Standard of Review (Vavilov)

What is a disguised correctness review and why is it improper under Vavilov?

Answer

It occurs when a court labels its review reasonableness but in substance decides what it thinks the right answer is. Reasonableness review asks if the decision is justified, not whether the court agrees.

#337 · Standard of Review (Vavilov)

Why can a decision be unreasonable even if the reasons are not required to be exhaustive?

Answer

Reasons need not be perfect or address every point, but a failure to grapple with the central issues and key arguments raised, or a gap that the court cannot fill, undermines justification under Vavilov.

#338 · Standard of Review (Vavilov)

How can a misapprehension of the evidence make a decision unreasonable under Vavilov?

Answer

If the decision maker fundamentally misunderstood the evidence or failed to account for it in a way that undermines the decision's logic, the decision lacks justification. The error must be sufficiently central, not a minor misstatement.

#339 · Standard of Review (Vavilov)

When a decision depends on weighing several statutory factors, what does reasonableness review require of the court?

Answer

The court checks that the decision maker considered the factors Parliament required and reached a result justified on the record. It cannot reweigh the factors or choose the weight it prefers, within the range of reasonable outcomes.

#340 · Standard of Review (Vavilov)

How does the existing practice of an administrative body affect reasonableness review?

Answer

Past decisions and internal consistency are a constraint on the decision maker. Departing from established practice is not unlawful, but the reasons must explain the departure. Unexplained inconsistency can render a decision unreasonable.

#341 · Standard of Review (Vavilov)

Is a labour arbitrator's interpretation of a collective agreement reviewed on reasonableness or correctness?

Answer

Reasonableness, with the arbitrator's experience informing what is reasonable in the labour context. The decision must still be justified by the text of the agreement, and courts do not reinterpret it themselves.

#342 · Standard of Review (Vavilov)

What did the Weber line of cases decide about disputes arising from a collective agreement?

Answer

Where the essential character of a dispute arises from the collective agreement, the arbitrator has exclusive jurisdiction, and courts should decline jurisdiction. This is a jurisdiction question about who decides, separate from the standard of review.

#343 · Standard of Review (Vavilov)

Is patent unreasonableness still a standard of review for labour board decisions?

Answer

Not as a common law standard. Dunsmuir collapsed it into reasonableness, and Vavilov confirmed that. Only a standard prescribed by statute, such as the BC Administrative Tribunals Act, is still applied as written.

#344 · Standard of Review (Vavilov)

Does a strong privative clause alter the standard of review for a labour board under Vavilov?

Answer

No. Vavilov removed privative clauses as a factor for choosing the standard because reasonableness is already presumed. Legislative intent now matters through the presumption and its recognised exceptions.

#345 · Standard of Review (Vavilov)

What standard applies to judicial review of a professional disciplinary tribunal's decision where there is no statutory appeal?

Answer

Reasonableness, with the presumption of deference. The tribunal's findings of professional misconduct and its sanction are reviewed for whether they are justified on the record and in light of the governing statute.

#346 · Standard of Review (Vavilov)

If a statute gives a right of appeal from a professional discipline decision, which standard applies?

Answer

Appellate standards: correctness for questions of law, and palpable and overriding error for facts and mixed fact and law. Vavilov holds that a statutory appeal mechanism signals that appellate review applies, not reasonableness.

#347 · Standard of Review (Vavilov)

How much deference does a disciplinary body's choice of sanction receive on review?

Answer

Considerable deference. The sanction is reviewed for reasonableness, and the reasons must justify the penalty, including by reference to comparable precedents or any departure from them. A court will not substitute a penalty it prefers.

#348 · Standard of Review (Vavilov)

When may delay in a professional discipline proceeding justify a stay of proceedings?

Answer

Delay is an abuse of process only where it causes significant prejudice that impairs a fair hearing, or the delay is otherwise unacceptable and brings the system into disrepute. Delay alone, without such prejudice, does not suffice.

#349 · Standard of Review (Vavilov)

How do Doré and Vavilov apply when a professional regulator's discretionary decision limits a Charter protection?

Answer

The regulator must proportionately balance the Charter protection against its statutory objectives under Doré. Vavilov left that framework in place, so review is for reasonableness, not correctness, and the court asks whether the balance was proportionate.

#350 · Standard of Review (Vavilov)

What standard presumptively applies when a court reviews an administrative decision on a benefits, pension or tax-related claim?

Answer

Reasonableness. Vavilov presumes it governs all merits review of administrative decisions. Only a legislative signal (such as a statutory appeal) or the rule of law (constitutional, central legal questions, tribunal boundaries) displaces it, not the subject matter.

#351 · Standard of Review (Vavilov)

What must a benefits decision show to be reasonable under Vavilov?

Answer

Justification, transparency and intelligibility: a rationale that is internally coherent and tied to the facts and law. The court reads reasons holistically and looks for a line of analysis, not perfection.

#352 · Standard of Review (Vavilov)

A claimant asks the reviewing court to prefer their reading of the medical evidence in a disability pension decision. Will it do so?

Answer

Not absent exceptional circumstances. Reasonableness review does not let the court reweigh or reassess evidence. A fundamental misapprehension of the evidence, or ignoring evidence that contradicts a finding, can still make the decision unreasonable.

#353 · Standard of Review (Vavilov)

How do the consequences for the individual affect reasonableness review of a decision to cut off benefits?

Answer

The greater the impact on the individual's rights and interests, the more the reasons must justify the outcome. Vavilov says decisions with harsh consequences demand a stronger justification from the decision-maker, and reasons must reflect the stakes.

#354 · Standard of Review (Vavilov)

A taxpayer is refused relief from penalties and interest by the Canada Revenue Agency under its discretionary relief power. Where and how is that refusal challenged?

Answer

By judicial review in the Federal Court, on reasonableness. Assessments themselves are appealed to the Tax Court, a separate statutory route. Do not confuse the Tax Court appeal with review of discretionary relief decisions.

#355 · Standard of Review (Vavilov)

What standard applies to a minister's exercise of a statutory discretion, and is that discretion unlimited?

Answer

Reasonableness. Discretion is never unfettered: it is bounded by the statute's text, context and purpose, and by the rule of law (as in Roncarelli v Duplessis, where a discretion was used for an improper purpose).

#356 · Standard of Review (Vavilov)

In reviewing a ministerial humanitarian and compassionate decision, what must the decision-maker genuinely engage with?

Answer

The considerations the statute makes relevant and the factors raised by the applicant, including a child's best interests. Kanthasamy treated these decisions as reviewed for reasonableness, rejecting a narrow approach that treated hardship as a mere threshold.

#357 · Standard of Review (Vavilov)

What approach now governs a challenge to the vires of a regulation made by a minister or Cabinet?

Answer

The Supreme Court has brought vires review of subordinate legislation under the Vavilov reasonableness framework, asking whether the regulation fits within the enabling statute's scope and purpose. Do not rely on older, narrower tests that only asked about irrelevant purposes.

#358 · Standard of Review (Vavilov)

Does the Governor in Council owe a duty of procedural fairness when it makes a legislative-type order?

Answer

Generally no. Orders of a legislative and policy character made by Cabinet carry no common law duty of procedural fairness (Inuit Tapirisat). Fairness duties attach to decisions affecting individuals, not broad policy or law-making.

#359 · Standard of Review (Vavilov)

Governor in Council decisions usually come without written reasons. How does a court test their reasonableness?

Answer

It examines the record and context to see whether the decision is justified in light of the statute and the evidence before Cabinet. The absence of formal reasons does not exempt the decision from reasonableness review, which looks to the whole record.

#360 · Standard of Review (Vavilov)

On appeal from a Federal Court judicial review judgment, what is the role of the appellate court?

Answer

It steps into the shoes of the reviewing judge (Agraira, following Northrop Grumman). It asks whether the judge chose the correct standard and applied it properly, which in effect means reviewing the administrative decision afresh.

#361 · Standard of Review (Vavilov)

Does the Court of Appeal defer to the judicial review judge's findings under the palpable and overriding error test?

Answer

No. That Housen standard applies to appeals from trial judgments. On appeal from judicial review the court reviews the judge's choice and application of the standard, focusing on the tribunal's decision rather than deferring to the judge.

#362 · Standard of Review (Vavilov)

What standard of review does an appeal court apply to the reviewing judge's selection of the standard of review?

Answer

Correctness. Whether the judge identified the right standard is a question of law. If the judge erred on this, the appellate court substitutes the right standard and applies it to the administrative decision itself.

#363 · Standard of Review (Vavilov)

What did Agraira v Canada decide about a minister's decision refusing a national security inadmissibility exemption?

Answer

The Supreme Court held the minister's discretionary decision was reviewable on reasonableness and upheld it. It also confirmed the appellate step-into-the-shoes approach and held that legitimate expectations create only procedural, not substantive, rights.

#364 · Standard of Review (Vavilov)

Is an appeal from a Federal Court judicial review judgment to the Federal Court of Appeal always as of right?

Answer

Under the Federal Courts Act, generally yes. Immigration is the key exception: the Immigration and Refugee Protection Act requires the judge to certify a serious question of general importance before an appeal lies.

#365 · Standard of Review (Vavilov)

A statute gives a right of appeal to the court from a tribunal. What standards apply on that appeal after Vavilov?

Answer

Appellate standards: correctness for questions of law, palpable and overriding error for facts and mixed fact and law. The statutory appeal signals the legislature's intent to displace the presumption of reasonableness.

#366 · Standard of Review (Vavilov)

A statute allows an appeal only on a question of law. Can the appellant challenge the tribunal's factual findings?

Answer

No. A law-only appeal confines the court to legal error. Disagreement with how the tribunal weighed evidence or found facts is not a ground of appeal unless it is recast as a genuine legal error.

#367 · Standard of Review (Vavilov)

What is an extricable question of law and why does it matter on a law-only appeal?

Answer

A pure legal error that can be separated from a mixed fact and law finding, such as applying the wrong legal test or misinterpreting a statute. It lets the appeal proceed even though the dispute otherwise involved applying law to facts.

#368 · Standard of Review (Vavilov)

Can a party appeal a pure question of mixed fact and law under a question of law only appeal clause?

Answer

Not unless an extricable legal error is found within it. Applying the correct test to the facts is mixed fact and law. The appeal clause does not reach disagreement about how the test applies.

#369 · Standard of Review (Vavilov)

Pre-Vavilov decisions like Pezim required deference on statutory appeals to expert tribunals. Is that still good law?

Answer

No. Vavilov held that where there is a statutory appeal, appellate standards apply and expertise alone does not justify deference on questions of law. Pezim's deference on such appeals is no longer followed.

#370 · Standard of Review (Vavilov)

What does palpable and overriding error mean when applied on a statutory appeal?

Answer

An error that is obvious (palpable) and goes to the outcome of the case (overriding). It is a high bar, so a court will not interfere with findings merely because it would have weighed the evidence differently.

#371 · Standard of Review (Vavilov)

What standard of review does a court use for an allegation that a tribunal breached procedural fairness?

Answer

No deference: the court decides whether the procedure was fair in all the circumstances, which is described as correctness-like. It asks if the party knew the case and had a full and fair chance to respond.

#372 · Standard of Review (Vavilov)

A party says a tribunal's reasons were inadequate. Is that a fairness or a reasonableness issue under Vavilov?

Answer

Whether a duty to give reasons arises is a matter of procedural fairness. Once reasons are given, their adequacy is assessed as part of reasonableness review, not as a stand-alone fairness ground.

#373 · Standard of Review (Vavilov)

If a decision-maker breached fairness and also reached an arguably unreasonable result, which should the court address first?

Answer

Fairness. A breach usually invalidates the decision without reaching the merits, and courts rarely refuse relief because the result would have been the same. Only a narrow exception for inevitable outcomes exists.

#374 · Standard of Review (Vavilov)

A claimant says an agency's past practice entitled them to a particular result. What can the doctrine of legitimate expectations give them?

Answer

Only procedural protection, such as notice and a chance to respond before the agency departs from its practice. It cannot compel a substantive outcome. Agraira confirmed that substantive legitimate expectations are not part of Canadian law.

#375 · Standard of Review (Vavilov)

What standard of review applies to a constitutional question raised against an administrative decision, such as whether a statute or decision infringes the Charter?

Answer

Correctness. Vavilov names constitutional questions as a rule of law category that rebuts the presumption of reasonableness, because the courts must give final and determinate answers on the Constitution's scope and application.

#376 · Standard of Review (Vavilov)

A tribunal applies its discretion in a way that limits a Charter right. How is that decision reviewed after Vavilov?

Answer

By reasonableness with the Doré proportionality analysis: the decision-maker must balance the Charter protection against the statutory objectives. Vavilov left that framework in place, so the correctness category is not triggered by every Charter issue.

#377 · Standard of Review (Vavilov)

Is the existence and scope of an Aboriginal or treaty right under section 35 reviewed on reasonableness or correctness?

Answer

Correctness, as a constitutional question. Trap: do not defer to the tribunal on what the right is, even if the tribunal has deep expertise in the field it regulates.

#378 · Standard of Review (Vavilov)

In a hybrid case with both a constitutional question and a discretionary outcome, how should the review be structured?

Answer

Separate the issues. Review the constitutional question on correctness, then review the remaining statutory or discretionary parts on reasonableness. The constitutional label does not turn the whole decision into a correctness review.

#379 · Standard of Review (Vavilov)

Why does a Charter section 7 argument on a deportation or detention decision not make correctness the standard for every point in the decision?

Answer

Only the question of the right's scope and constitutional limits goes to correctness. Applying settled section 7 principles to facts, or exercising discretion within them, is reviewed on reasonableness with proportionality.

#380 · Standard of Review (Vavilov)

On a long fact pattern with the statute provided, what is the first step in a reasonableness analysis?

Answer

Identify the standard and its basis (presumption, no rebuttal), then read the decision-maker's reasons and outcome together. Vavilov review is reasons-first: begin with what the decision-maker actually said, not with your own answer.

#381 · Standard of Review (Vavilov)

When you apply the statute provided in an exam fact pattern, what does Vavilov require the decision to respect about the statute?

Answer

The decision must be justified in light of the legal constraints, including the text, context and purpose of the enabling statute. An interpretation that ignores clear wording or purpose will be unreasonable, even if the result seems fair.

#382 · Standard of Review (Vavilov)

What are the two broad types of fundamental flaw that make a decision unreasonable under Vavilov?

Answer

A failure of rationality internal to the reasoning (logical gaps, circularity, unfounded generalizations), and a decision that is untenable in light of the factual and legal constraints bearing on it. Name which one applies in your answer.

#383 · Standard of Review (Vavilov)

How should you handle the facts in a reasonableness analysis when the decision-maker made a finding that is hard to support?

Answer

Check whether the finding is untenable on the evidence before the decision-maker. A court does not reweigh evidence, but it may intervene where the decision-maker fundamentally misapprehended the evidence or ignored it entirely.

#384 · Standard of Review (Vavilov)

Does a reviewing court decide what the correct outcome should be before assessing reasonableness?

Answer

No. Vavilov says the court does not conduct its own de novo analysis or ask what it would have decided. It examines the decision made and the reasoning given, and asks only whether they are justified.

#385 · Standard of Review (Vavilov)

In everyday terms, how do courts state a finding of unreasonableness under Vavilov?

Answer

They say the decision lacks justification, transparency and intelligibility, or that it is untenable on the legal and factual constraints. State the specific flaw (for example, a failure to follow the statute's wording) rather than just saying the decision is wrong.

#386 · Standard of Review (Vavilov)

What argument often wins when a decision-maker ignored a party's central submission?

Answer

A failure of responsiveness: the reasons must meaningfully account for the central issues and concerns the parties raised. Silence on a key argument can show the decision-maker did not actually grapple with it.

#387 · Standard of Review (Vavilov)

How can a party argue that a tribunal's departure from its own past decisions was unreasonable?

Answer

Argue that it gave no explanation for departing. Vavilov says a decision-maker need not follow its earlier decisions strictly, but must explain a departure from longstanding practice or earlier decisions on the same issue.

#388 · Standard of Review (Vavilov)

What kind of consequence argument supports a finding of unreasonableness?

Answer

That the decision severely affects the individual and the reasons do not justify that impact. Vavilov paras 133-135 require reasons to reflect the stakes where liberty, livelihood or family are at risk.

#389 · Standard of Review (Vavilov)

Is a superficial or peripheral flaw in the reasons enough to quash a decision on reasonableness review?

Answer

No. The flaws must be sufficiently serious and central to the decision, not a minor misstep, a drafting lapse or a line-by-line treasure hunt for error. A decision with minor defects will be upheld.

#390 · Standard of Review (Vavilov)

Can a tribunal's specialized expertise justify choosing the reasonableness standard instead of correctness after Vavilov?

Answer

No. Expertise is no longer a contextual factor for selecting the standard. Trap: it still matters inside reasonableness review, because the decision-maker's expertise can inform the reasons and be reflected in how they are read.

#391 · Standard of Review (Vavilov)

Is a question of true jurisdiction a separate correctness category after Vavilov?

Answer

No. The Dunsmuir category of true questions of jurisdiction was abandoned. Do not argue correctness merely because the issue is labelled jurisdictional; the question is whether a rebuttal category (legislative intent or rule of law) applies.

#392 · Standard of Review (Vavilov)

What is the common error when students treat the presumption of reasonableness as rebutted?

Answer

Finding rebuttal too easily, for instance because the issue is a question of law, important, or seems jurisdictional. Only a legislated appeal route or a rule of law category (constitutional, general law of central importance, jurisdictional lines) rebuts it.

#393 · Standard of Review (Vavilov)

A tribunal interprets its home statute and the interpretation is of broad public importance. Does that alone justify correctness?

Answer

No. Correctness for general questions of law applies only where the question is of central importance to the legal system as a whole, such as the scope of solicitor-client privilege. Interpreting its home statute stays reasonableness.

#394 · Standard of Review (Vavilov)

Which standard applies to a statutory appeal from a tribunal to a court if the statute is silent on the standard?

Answer

Appellate standards from Housen: correctness for questions of law, palpable and overriding error for fact and mixed fact and law. A statutory appeal route displaces the presumption of reasonableness.

#395 · Standard of Review (Vavilov)

Who bears the burden when a decision is reviewed on reasonableness?

Answer

The party challenging the decision. They must show it is unreasonable, which means pointing to a sufficiently serious shortcoming in the reasoning or outcome. A court begins from deference to the decision-maker's result.

#396 · Standard of Review (Vavilov)

On correctness review, does the challenger bear a burden of showing the decision is wrong in the same way?

Answer

The court decides the question itself and arrives at its own answer, with no deference. The challenger must still persuade it, but the court is not asking whether the decision-maker's reasoning was justified; it decides what the correct answer is.

#397 · Standard of Review (Vavilov)

Who must prove that the presumption of reasonableness has been rebutted?

Answer

The party arguing for correctness or appellate standards. Reasonableness is the starting point, so that party must point to legislative intent (an appeal route) or a rule of law category to displace it.

#398 · Standard of Review (Vavilov)

If a tribunal gave no written reasons, how is a decision reviewed for reasonableness and who bears the burden?

Answer

The court looks to the record and the surrounding context to discern the rationale. The challenger still bears the burden of showing unreasonableness; absence of reasons does not itself make the decision unreasonable, though it limits justification.

#399 · Judicial Review Procedure and Remedies

Which court hears judicial review of a decision made by a federal board, commission or other tribunal?

Answer

Usually the Federal Court under Federal Courts Act s 18 and 18.1, which has exclusive original jurisdiction. Exception: s 28 lists tribunals reviewed directly by the Federal Court of Appeal. Provincial superior courts cannot review federal decision-makers.

#400 · Judicial Review Procedure and Remedies

Which court reviews a decision of a provincial tribunal, and why does that court have the power?

Answer

The provincial superior court, through its inherent supervisory jurisdiction, which s 96 of the Constitution Act, 1867 protects. A privative clause cannot fully remove it (Crevier). The Federal Court has no role here.

#401 · Judicial Review Procedure and Remedies

Which federal bodies go straight to the Federal Court of Appeal for judicial review instead of the Federal Court?

Answer

Those listed in Federal Courts Act s 28(1), such as the CRTC, the Competition Tribunal and the Canada Industrial Relations Board. Trap: check whether the decision-maker is on that list before choosing the Federal Court.

#402 · Judicial Review Procedure and Remedies

How does the forum rule apply when a single dispute involves both a federal and a provincial decision-maker?

Answer

Each decision is reviewed in the court with jurisdiction over its own decision-maker: Federal Court for the federal body, provincial superior court for the provincial one. Neither court can review the other's decision-maker.

#403 · Judicial Review Procedure and Remedies

Can a provincial superior court review a federal board's decision if the applicant frames the claim as a Charter challenge?

Answer

Not by judicial review. Section 18 gives the Federal Court exclusive jurisdiction over relief against federal boards, and relabelling the claim does not change the forum. Charter issues are raised in the proper forum for review.

#404 · Judicial Review Procedure and Remedies

What is the time limit for applying for judicial review of a federal decision under Federal Courts Act s 18.1(2)?

Answer

30 days from when the decision or order was first communicated to the Deputy Attorney General of Canada or to the party directly affected, whichever applies. Trap: the clock runs from first communication, not from receipt of reasons.

#405 · Judicial Review Procedure and Remedies

Who may bring an application for judicial review of a federal board under s 18.1(1)?

Answer

The Attorney General of Canada or anyone directly affected by the matter. A person not directly affected must obtain public interest standing, which is a discretionary doctrine and not an automatic right.

#406 · Judicial Review Procedure and Remedies

Can the 30-day limit under s 18.1(2) be extended, and by whom?

Answer

Yes, a judge of the Federal Court may allow further time. The discretion is exercised on principles, so an applicant who simply misses the deadline gets no extension without a proper explanation and merit.

#407 · Judicial Review Procedure and Remedies

What factors guide a Federal Court judge asked to extend time for judicial review (Hennelly)?

Answer

A continuing intention to pursue the application, an arguable case, no prejudice to the respondent from the delay, and a reasonable explanation for the delay. The overriding question is what the interests of justice require.

#408 · Judicial Review Procedure and Remedies

Which remedies does s 18.1(3) of the Federal Courts Act allow on an application for judicial review?

Answer

An order to do an act or refrain, a declaration of invalidity, quashing, setting aside, setting aside and referring back for redetermination, and prohibition or restraint. Remedies are discretionary, so success on the merits does not guarantee relief.

#409 · Judicial Review Procedure and Remedies

What is the key question in deciding whether a body is a federal board, commission or other tribunal under the Federal Courts Act?

Answer

Whether it exercises jurisdiction or powers conferred by an Act of Parliament or by a Crown prerogative order. Look to the source of the power (Anisman), not to the body's name or its federal location.

#410 · Judicial Review Procedure and Remedies

Why is a decision of a purely private body, such as a voluntary religious congregation, not subject to judicial review?

Answer

Judicial review applies only to decisions of a sufficiently public character (Highwood Congregation v Wall, 2018 SCC 26). A private body acting under its own rules or contract is not reviewable, even if incorporated by statute.

#411 · Judicial Review Procedure and Remedies

Are provincially appointed s 96 superior court judges acting as persona designata treated as federal boards?

Answer

No. The definition of federal board excludes the Tax Court of Canada and persons appointed under a provincial law or under s 96 of the Constitution Act, 1867. Their decisions are not reviewed by the Federal Court under s 18.

#412 · Judicial Review Procedure and Remedies

Does the Federal Courts Act definition of federal board capture exercises of the Crown prerogative?

Answer

Yes. It covers bodies or persons exercising powers under an order made under a Crown prerogative, as well as statutory powers. This lets the Federal Court review certain federal executive decisions, such as passport matters.

#413 · Judicial Review Procedure and Remedies

What is the practical test from Air Canada v Toronto Port Authority for whether a federal body's decision is reviewable?

Answer

Ask whether the decision-maker exercised a federal public power, using public character indicators such as the source of the power and the nature of the function. A purely commercial or private decision is not reviewable.

#414 · Judicial Review Procedure and Remedies

What does a typical provincial judicial review statute do compared with the common law prerogative writs?

Answer

It streamlines procedure, replacing the separate writs of certiorari, mandamus and prohibition with a single application and relief, as in Ontario's and British Columbia's Judicial Review Procedure Acts. The court's discretion over remedies remains.

#415 · Judicial Review Procedure and Remedies

In Ontario, which court hears an application for judicial review of a provincial tribunal under the Judicial Review Procedure Act?

Answer

The Divisional Court, a branch of the Superior Court of Justice. Trap: some matters can be heard by a single judge of the Superior Court where urgent or where the statute so provides.

#416 · Judicial Review Procedure and Remedies

What is the commencement time limit for judicial review in Alberta under the Rules of Court?

Answer

Six months after the date of the decision or act, under Alberta Rule 3.15, subject to extension by the court. Compare federal practice, where the limit is only 30 days under s 18.1(2).

#417 · Judicial Review Procedure and Remedies

How is judicial review started in British Columbia, and which court hears it?

Answer

By petition to the Supreme Court of British Columbia under the Judicial Review Procedure Act. The Administrative Tribunals Act sets a 60-day limit for decisions of tribunals it governs, which a court may extend.

#418 · Judicial Review Procedure and Remedies

Does Ontario's Judicial Review Procedure Act contain a fixed limitation period for applying for judicial review?

Answer

No general fixed period appears in the Act, but the court may refuse relief for unreasonable delay, and many tribunal statutes set specific limits. Trap: assuming no limit means delay never matters.

#419 · Judicial Review Procedure and Remedies

What three requirements make up the test for public interest standing (Downtown Eastside)?

Answer

A serious justiciable issue is raised, the applicant has a real stake or genuine interest in it, and the proceeding is a reasonable and effective way to bring the issue before the courts. The factors are weighed together, not as a strict checklist.

#420 · Judicial Review Procedure and Remedies

How must courts apply the public interest standing factors according to Downtown Eastside?

Answer

Flexibly and purposively, as a cumulative assessment rather than rigid conditions, guided by the rationale for limiting standing. Courts consider access to justice, avoiding wasted resources, and ensuring a proper adversarial presentation.

#421 · Judicial Review Procedure and Remedies

What does the genuine interest factor look at when a party seeks public interest standing?

Answer

The applicant's real stake or engagement with the issue, such as its capacity, track record, prior involvement and links to the people affected. A sincere, informed engagement with the issue suffices; a direct personal interest is unnecessary.

#422 · Judicial Review Procedure and Remedies

How does a court assess whether a proceeding is a reasonable and effective means to bring the matter to court?

Answer

It considers the plaintiff's capacity, whether the case is of public importance, whether other parties with a direct stake could sue, and the impact on the courts. Directly affected litigants who are likely to sue count against standing.

#423 · Judicial Review Procedure and Remedies

Is public interest standing a right once the three factors are satisfied?

Answer

No. Standing remains discretionary and the court weighs the factors for and against. Earlier Canadian Council of Churches v Canada first confined the third criterion to the existence of a more effective alternative, which Downtown Eastside loosened.

#424 · Judicial Review Procedure and Remedies

What does an order in the nature of certiorari do on judicial review of an administrative decision?

Answer

It quashes (sets aside) the decision, removing its legal effect. It looks backward at a decision already made. Relief is discretionary, so a successful applicant is not automatically entitled to it.

#425 · Judicial Review Procedure and Remedies

After quashing a decision under Vavilov, what is the usual next step, and when may the court decline to remit?

Answer

The matter is usually remitted to the decision-maker to reconsider, since the legislature chose it to decide. A court may decline to remit where remitting would be pointless because only one outcome is possible.

#426 · Judicial Review Procedure and Remedies

Which kinds of unlawful decisions can ground certiorari today, using current vocabulary?

Answer

An unreasonable decision, a decision made in breach of procedural fairness, or an incorrect decision on a question where correctness applies, such as a constitutional question. The old jurisdictional error label no longer drives the analysis.

#427 · Judicial Review Procedure and Remedies

Can certiorari be used to quash the decision of a purely private body, such as a private club or religious congregation?

Answer

Generally no. Judicial review requires a decision of a public character exercising state-conferred authority. A private body's decision is not reviewable merely because it affects members, as in Highwood Congregation v Wall.

#428 · Judicial Review Procedure and Remedies

How does certiorari differ from mandamus in what it does to the administrative decision-maker?

Answer

Certiorari quashes what the decision-maker has already done. Mandamus compels the decision-maker to perform a public legal duty it has refused or failed to carry out. Mandamus does not dictate how a discretion is exercised.

#429 · Judicial Review Procedure and Remedies

What is the core function of prohibition in administrative law?

Answer

It stops a tribunal from starting or continuing a proceeding it lacks authority to conduct, or from acting unlawfully. It is forward-looking and preventive, unlike certiorari, which corrects a decision already made.

#430 · Judicial Review Procedure and Remedies

Why will a court usually refuse to review an administrative proceeding that is still underway, and what is the exception?

Answer

Prematurity: parties should exhaust the administrative process first, avoiding fragmented proceedings, as in CB Powell v Canada (CBSA). Only exceptional circumstances justify early intervention, and the bar is high; cost and delay alone rarely qualify.

#431 · Judicial Review Procedure and Remedies

What test governs an interim stay or injunction pending judicial review of a decision?

Answer

The RJR-MacDonald test: a serious issue to be tried, irreparable harm to the applicant if relief is refused, and the balance of convenience. Public interest weighs heavily in the balance when a public body is the respondent.

#432 · Judicial Review Procedure and Remedies

Why is prohibition generally unavailable once the tribunal has finished its decision?

Answer

There is nothing left to prevent. The applicant should instead seek certiorari to quash the completed decision. Prohibition fits only where the unlawful proceeding is pending or about to occur.

#433 · Judicial Review Procedure and Remedies

Why do applicants often seek a declaration rather than an injunction against the Crown or a Crown minister?

Answer

Crown proceedings legislation restricts injunctions against the Crown, while declarations remain available and the Crown is expected to respect them. A declaration therefore often serves as the practical remedy against government.

#434 · Judicial Review Procedure and Remedies

What does a declaration do on judicial review, and what does it not do?

Answer

It states the parties' legal rights or obligations authoritatively. It does not quash a decision or compel action, and it carries no direct coercive sanction. Like other public law remedies, it is discretionary.

#435 · Judicial Review Procedure and Remedies

What requirements must be met before a court will grant a declaration, per Ewert v Canada?

Answer

The court must have jurisdiction, the question must be real rather than theoretical, the applicant must have a genuine interest in resolving it, and the respondent must have an interest in opposing the declaration.

#436 · Judicial Review Procedure and Remedies

What standard of review applies to challenges to the validity of delegated legislation such as regulations, after Auer v Auer?

Answer

The Vavilov framework applies, with reasonableness as the presumptive standard. The reviewing court asks whether the regulation is consistent with the enabling statute's purposes and scope, rather than inquiring into its wisdom.

#437 · Judicial Review Procedure and Remedies

When is a declaration preferable to certiorari as the remedy sought?

Answer

When the decision need not be undone but the applicant needs the law or their rights clarified, such as a general interpretation of a statute, or where no discrete decision exists to quash.

#438 · Judicial Review Procedure and Remedies

Can a declaration of rights be sought in an ordinary action, not only on an application for judicial review?

Answer

Yes, in many provinces a declaration may be sought by action or by application. But challenges to the exercise of statutory power are usually channelled into judicial review procedure, and courts may refuse to hear them otherwise.

#439 · Judicial Review Procedure and Remedies

What did Harelkin v University of Regina decide about judicial review where a statutory appeal exists?

Answer

Judicial review is discretionary, and a court may refuse it where an adequate alternative remedy exists. The court weighs factors such as convenience, burden of the process, speed, expertise and costs of the alternative.

#440 · Judicial Review Procedure and Remedies

List the kinds of factors a court weighs when deciding whether an alternative remedy is adequate.

Answer

The convenience of the alternative, the nature of the error alleged, the burden on parties, the speed and cost of the alternative, the expertise of the appellate body, and the statutory purpose. No single factor is decisive.

#441 · Judicial Review Procedure and Remedies

Who may apply for judicial review under s 18.1(1) of the Federal Courts Act, and what does 'directly affected' mean?

Answer

The Attorney General of Canada or anyone directly affected by the matter. A person is directly affected when the decision prejudicially affects their rights, imposes legal obligations on them or has a direct effect on them in some other way.

#442 · Judicial Review Procedure and Remedies

When is an alternative remedy treated as inadequate, so judicial review proceeds?

Answer

When the appeal or internal body cannot grant the relief needed, cannot consider the ground raised (such as bias or a constitutional point), or would be much slower or costlier. Inadequacy is assessed against the actual complaint.

#443 · Judicial Review Procedure and Remedies

Can a full rehearing on appeal cure a procedural fairness breach at the first-instance hearing?

Answer

Sometimes. If the appeal is a true fresh hearing with full procedural protections, it may cure the defect, though not where the original flaw was fundamental. Courts look at the breadth of the appeal.

#444 · Judicial Review Procedure and Remedies

Which communication starts the 30-day clock under s 18.1(2) if the Deputy Attorney General's office and the party are told at different times?

Answer

The clock runs from when the decision was first communicated to the office of the Deputy Attorney General or to the directly affected party. Later receipt of written reasons does not restart the period.

#445 · Judicial Review Procedure and Remedies

Must every Hennelly factor be satisfied before the Federal Court extends time for judicial review (Larkman)?

Answer

No. In Larkman, 2012 FCA 204, the factors guide the overriding question of whether extending time serves the interests of justice. A weak showing on one factor may be outweighed by the others.

#446 · Judicial Review Procedure and Remedies

If a provincial statute sets no fixed deadline for judicial review, how is delay treated?

Answer

Delay is a factor in the court's discretion to refuse relief. Courts consider the length of delay, the explanation, and prejudice to the respondent or third parties who relied on the decision.

#447 · Judicial Review Procedure and Remedies

What does the equitable doctrine of laches require before relief is refused in judicial review?

Answer

Delay combined with prejudice or reliance by others, such as third parties who acted on the decision. Delay alone, with no resulting prejudice, usually does not defeat the application, though it counts against the applicant.

#448 · Judicial Review Procedure and Remedies

Does time spent pursuing an internal review automatically excuse delay in filing for judicial review?

Answer

No. Pursuing an alternative remedy can supply a reasonable explanation, but it does not automatically stop the clock. The applicant should still show a continuing intention to seek review and the absence of prejudice.

#449 · Judicial Review Procedure and Remedies

Is a court obliged to grant a remedy once it finds a reviewable error in a tribunal decision?

Answer

No. Judicial review relief is discretionary, even when an error is made out. The court weighs factors such as delay, conduct, alternative remedies and futility. The trap is assuming that a finding of unreasonableness or unfairness automatically means the decision is quashed.

#450 · Judicial Review Procedure and Remedies

How does an adequate alternative remedy affect an application for judicial review?

Answer

A court may decline to hear or grant relief where another adequate remedy, such as a statutory appeal or internal review, is available. The question is whether that route can address the complaint as well as review would, not merely whether it exists.

#451 · Judicial Review Procedure and Remedies

Can unexplained delay in bringing an application for judicial review justify refusing relief?

Answer

Yes. Undue delay, especially with prejudice to the respondent or third parties or reliance on the decision, is a recognised ground to refuse discretionary relief. Even within the statutory filing period, the applicant's overall conduct and diligence can still count against them.

#452 · Judicial Review Procedure and Remedies

What is the mootness concern in judicial review, and can a court still hear a moot case?

Answer

A matter is moot when the live controversy has disappeared. A court may still hear it in its discretion, weighing the continuing adversarial context, judicial economy and its proper law-making role. Mootness is a threshold discretion, not an absolute bar.

#453 · Judicial Review Procedure and Remedies

Can a court refuse relief for a breach of procedural fairness because the result would have been the same anyway?

Answer

Rarely. Courts have occasionally declined relief where the outcome was inevitable on the law, but this exception is narrow and cautiously applied. Denying a fair hearing generally requires redoing it, since the reviewing court should not speculate about what the hearing would have shown.

#454 · Judicial Review Procedure and Remedies

When will a court overlook an error under reasonableness review because it is minor?

Answer

Under Vavilov, a decision is not set aside for a merely superficial or peripheral flaw. The shortcoming must be sufficiently serious to cause the reviewing court to lose confidence in the decision's justification, intelligibility or transparency, going to the decision's core.

#455 · Judicial Review Procedure and Remedies

What is the doctrine of functus officio as applied to a final tribunal decision?

Answer

Once a decision-maker has validly made a final decision, it generally cannot revisit or change it, because finality matters. Chandler v Alberta Association of Architects holds this for adjudicative bodies. The trap is applying it as rigidly as to a court order.

#456 · Judicial Review Procedure and Remedies

What are the recognised exceptions allowing a tribunal to correct its final decision despite functus officio?

Answer

A tribunal may correct clerical errors or slips, fix errors in expressing its manifest intention, or act under an express statutory power to reconsider or vary. It may also finish a matter left incomplete, but not simply change its mind.

#457 · Judicial Review Procedure and Remedies

Is a tribunal functus officio after a court sets its decision aside and remits the matter?

Answer

No. When a court quashes a decision and remits it, the matter is outstanding again and the tribunal must decide it afresh, in line with the court's reasons. The earlier decision no longer stands as a final disposition barring reconsideration.

#458 · Judicial Review Procedure and Remedies

Is the functus officio doctrine applied less strictly to administrative tribunals than to courts?

Answer

Yes. Chandler itself recognises that the principle must be applied flexibly to administrative decision-makers, given their statutory frameworks and the regulatory purposes served. Still, finality is the default, and a power to reopen must come from the statute or a recognised exception.

#459 · Judicial Review Procedure and Remedies

When do reasons or a decision become final for functus officio purposes, so that reopening is barred?

Answer

A decision is generally final once the decision-maker has formally issued or communicated its final outcome in accordance with its governing procedure. A mere draft or deliberation does not count. Check the enabling statute for when a decision takes effect.

#460 · Judicial Review Procedure and Remedies

What does the certified tribunal record contain on a federal judicial review, and how is it obtained?

Answer

A party requests the decision-maker's material, and the tribunal then sends a certified copy of what was before it when deciding. Under the Federal Courts Rules this is the tribunal record. Reasonableness review is conducted on that record.

#461 · Judicial Review Procedure and Remedies

What is the general rule on new evidence in an affidavit filed on judicial review?

Answer

The record is limited to what was before the decision-maker, so fresh evidence on the merits is generally not admissible. The court reviews the decision made, not the case the applicant now wishes they had presented.

#462 · Judicial Review Procedure and Remedies

What are the recognised exceptions allowing affidavit evidence beyond the tribunal record on judicial review?

Answer

Affidavits may supply general background that helps the court understand the issues, show procedural defects not apparent from the record, or show a complete absence of evidence before the decision-maker. Each exception is narrow and must not argue the merits.

#463 · Judicial Review Procedure and Remedies

Why is affidavit evidence usually needed to prove a breach of procedural fairness?

Answer

A fairness breach, such as bias or lack of notice, may not appear on the face of the record. Evidence outside the record is admissible to establish the procedural defect. It must go to how the process unfolded, not to relitigating the merits.

#464 · Judicial Review Procedure and Remedies

What is the usual time limit to start a federal judicial review application, and can it be extended?

Answer

Under section 18.1(2) of the Federal Courts Act, an application must be filed within 30 days after the decision was first communicated. A judge may extend the period. The extension is discretionary and depends on a continuing intention, merit and lack of prejudice.

#465 · Judicial Review Procedure and Remedies

What is the normal remedy when a court finds a decision unreasonable under Vavilov?

Answer

The usual remedy is to set the decision aside and remit the matter to the decision-maker for redetermination with the court's reasons in mind. The legislature chose the administrative decision-maker to decide the merits, so the court ordinarily does not substitute its own.

#466 · Judicial Review Procedure and Remedies

When may a reviewing court decline to remit and decide the matter itself?

Answer

Under Vavilov, a court may decline to remit where only one possible outcome is reasonable, so remitting would be pointless, or other considerations such as undue delay or fairness to the parties favour finality. This is an exception, not the default.

#467 · Judicial Review Procedure and Remedies

What is the difference between certiorari and a declaration as judicial review remedies?

Answer

Certiorari quashes a decision, removing its legal effect. A declaration states the parties' legal position without setting anything aside or compelling action. A declaration alone leaves the impugned decision standing unless the court also quashes it.

#468 · Judicial Review Procedure and Remedies

What are the core requirements for a court to grant mandamus?

Answer

The applicant must show a public legal duty to act, owed to them, a clear right to its performance, and, normally, that they demanded performance and were refused. Mandamus is also discretionary and does not compel a particular exercise of a true discretion.

#469 · Judicial Review Procedure and Remedies

What does the remedy of prohibition do, and when is it available?

Answer

Prohibition prevents a decision-maker from proceeding or from taking a step in future, such as acting without jurisdiction or in breach of natural justice. It looks forward, unlike certiorari, which quashes a decision already made.

#470 · Judicial Review Procedure and Remedies

Who can appeal an administrative decision under a statutory appeal provision?

Answer

Only those the statute gives a right of appeal to, typically a party or person directly affected. The statute sets the scope, such as questions of law only, and whether leave is needed. Courts have no inherent appellate power over tribunals.

#471 · Judicial Review Procedure and Remedies

What standards apply when a court hears a statutory appeal from an administrative decision under Vavilov?

Answer

Appellate standards apply: correctness for questions of law and palpable and overriding error for questions of fact and mixed fact and law (Housen v Nikolaisen). Reasonableness is not the standard when the legislature has created an appeal.

#472 · Judicial Review Procedure and Remedies

What does a leave requirement for a statutory appeal mean in practice?

Answer

The appellant must first obtain permission, usually by showing an arguable point or a question of sufficient importance. Granting leave is a screening step, not a ruling on the merits. Failure to obtain leave ends the appeal, so check the statute's time limits.

#473 · Judicial Review Procedure and Remedies

How does an appellate court review a Federal Court judgment on an administrative judicial review?

Answer

Under Agraira, the appellate court steps into the shoes of the court below and focuses on the administrative decision itself. It asks whether the first court chose the correct standard and applied it properly, rather than deferring to that court.

#474 · Judicial Review Procedure and Remedies

What is the usual costs rule on an application for judicial review between a successful applicant and the respondent government?

Answer

Costs are discretionary and ordinarily follow the event, so the successful party usually recovers partial indemnity. Courts may reduce or deny costs for novelty, mixed success or conduct. Do not assume full indemnity.

#475 · Judicial Review Procedure and Remedies

When will a court award costs against an administrative tribunal that was the respondent on judicial review?

Answer

Rarely. A tribunal that confines itself to explaining its record and jurisdiction is normally not liable for costs. One that actively defends the merits of its own decision, acting like a party, risks a costs order.

#476 · Judicial Review Procedure and Remedies

What is the Okanagan test for interim costs awarded in advance to a public interest litigant?

Answer

The party cannot afford to litigate and no other realistic option exists, the claim has prima facie merit, and the issues transcend the litigant's interests, are of public importance and have not been resolved. It is exceptional relief.

#477 · Judicial Review Procedure and Remedies

How did Carter v Canada (2015) treat special costs for a public interest litigant who succeeded?

Answer

The Court awarded special costs without requiring the strict advance-costs conditions: the case was exceptional, the claimants had no personal pecuniary interest justifying the suit, and the issues transcended their interests. Compare Caron v Alberta (2015), which refused advance costs.

#478 · Judicial Review Procedure and Remedies

Does public interest standing mean an unsuccessful public interest litigant is shielded from an adverse costs order?

Answer

No. There is no automatic immunity. The court weighs the public importance of the issues, the litigant's private interest and the conduct of the case, and may reduce or withhold costs, but loser-pays remains the starting point.

#479 · Judicial Review Procedure and Remedies

What four steps does Vancouver (City) v Ward set out for a claim for Charter damages under section 24(1)?

Answer

Prove a Charter breach; show damages would serve a function (compensation, vindication or deterrence); consider countervailing factors such as alternative remedies and good governance; then fix the quantum. The claimant bears the burden on the first two steps.

#480 · Judicial Review Procedure and Remedies

Under Ward, what functions can justify an award of Charter damages, and is bad faith required?

Answer

Compensation, vindication of the right or deterrence of future breaches must be served; one may suffice. Bad faith or a tort is not required, though the claim is distinct from private law damages and is not a tort remedy.

#481 · Judicial Review Procedure and Remedies

How do the Mackin and Ward cases limit damages when the state acted under a statute later held invalid?

Answer

Absent clearly wrong conduct, bad faith or abuse of power, the state is not liable in damages for good-faith enforcement of a law later declared unconstitutional. This threshold is a countervailing factor at step three.

#482 · Judicial Review Procedure and Remedies

Can a reviewing court on an ordinary judicial review application award damages, and how can a damages claim be joined?

Answer

Review remedies are public law ones: quashing, declarations, prohibition, mandamus. Damages generally need an action. Statutes such as the Federal Courts Act (s 18.4(2)) let a court treat an application as an action.

#483 · Judicial Review Procedure and Remedies

What amount did the Supreme Court restore in Ward, and for which breach?

Answer

It restored $5,000 for the unjustified strip search, a breach of section 8, to vindicate the right and deter. The case shows that modest awards are normal and that damages must be functionally justified.

#484 · Judicial Review Procedure and Remedies

What is the policy/operational distinction in Crown negligence and what did Imperial Tobacco say about core policy immunity?

Answer

Core policy decisions based on economic, social or political considerations, made by those entrusted with them and not irrational or in bad faith, are immune. Implementing such policy is operational and can attract liability. The label is not decisive.

#485 · Judicial Review Procedure and Remedies

What two-stage test decides whether a public authority owed a private law duty of care in negligent inspection or regulation?

Answer

Cooper v Hobart: first, foreseeability and proximity, which may be found in a recognized category or in statute and relationship; second, residual policy reasons that negate the duty. A statutory power alone does not create proximity.

#486 · Judicial Review Procedure and Remedies

Why did Cooper v Hobart and Edwards v Law Society find no duty to investors harmed by a regulator's failures?

Answer

The statutes imposed duties to the public at large, not to individual investors, so no proximity existed. A broad public interest mandate, with possible conflicting duties, usually defeats a private duty of care.

#487 · Judicial Review Procedure and Remedies

Is the Crown liable in tort for losses caused by an invalid by-law or regulation passed in good faith?

Answer

Generally no. Welbridge and Holland hold that invalidity alone, or negligent law-making, grounds no damages claim. A plaintiff needs a recognized tort such as misfeasance, bad faith or unauthorized conduct beyond mere invalidity.

#488 · Judicial Review Procedure and Remedies

What are the two forms of misfeasance in public office recognized in Odhavji Estate v Woodhouse?

Answer

Targeted malice, where the officer intends to injure; or a deliberate unlawful act by an officer who knows it is unlawful and likely to harm the plaintiff. Both require an unlawful exercise of public power.

#489 · Judicial Review Procedure and Remedies

After inadequate Crown consultation, what remedy did the Supreme Court order in Clyde River (2017)?

Answer

It quashed the National Energy Board's authorization of seismic testing because the Crown's duty to consult, relied on through the Board process, was not met. Quashing is the usual remedy when consultation was inadequate before the decision.

#490 · Judicial Review Procedure and Remedies

What remedies does Haida Nation contemplate when the duty to consult is breached before a claim is proven?

Answer

A court can order consultation, grant an injunction pending consultation or accommodation, or award damages in the right case. The aim is to protect the claimed right through process, not to give Indigenous groups a veto.

#491 · Judicial Review Procedure and Remedies

In Tsleil-Waututh v Canada (2018), what did the Federal Court of Appeal do about the Trans Mountain approval?

Answer

It quashed the Order in Council approving the project because consultation in the final phase was inadequate, and sent the matter back for redetermination. Remitting lets the Crown cure the process defect.

#492 · Judicial Review Procedure and Remedies

What standard of review applies to the existence and to the adequacy of the duty to consult?

Answer

Whether the duty exists and its extent are legal questions reviewed for correctness. The Crown's adequacy of consultation, a mixed question of process, is reviewed for reasonableness: perfect satisfaction is not required.

#493 · Judicial Review Procedure and Remedies

Does the duty to consult apply to the legislative process, and what follows for the remedy?

Answer

Mikisew Cree (2018) held the duty is not triggered by law-making, so courts will not review or quash legislation on that ground. The duty applies to Crown conduct such as permits, approvals and regulatory decisions.

#494 · Judicial Review Procedure and Remedies

Which court hears judicial review of a federal board, and which bodies go straight to the Federal Court of Appeal?

Answer

Federal Court has jurisdiction over federal boards under s 18. Section 28(1) lists bodies, such as the CRTC and Competition Tribunal, whose decisions are reviewed directly by the Federal Court of Appeal.

#495 · Judicial Review Procedure and Remedies

What four factors from Hennelly guide a judge deciding whether to extend the 30 day federal judicial review deadline?

Answer

Continuing intention to pursue the application, an arguable case, no prejudice to the respondent, and a reasonable explanation for the delay. The Federal Court of Appeal applies these under s 18.1(2) and may extend before or after expiry.

#496 · Judicial Review Procedure and Remedies

Who has standing to apply for federal judicial review, and when is public interest standing granted?

Answer

Anyone directly affected by the matter (s 18.1(1)). Otherwise public interest standing needs a serious justiciable issue, a real stake or genuine interest, and no other reasonable and effective way to bring it before the court.

#497 · Judicial Review Procedure and Remedies

A party seeks judicial review in the middle of a proceeding before a tribunal that has not yet made a final decision. What is the trap?

Answer

Courts refuse premature review absent exceptional circumstances (C.B. Powell). Parties should exhaust the administrative process and any adequate alternative remedy, and relief is discretionary, so the application will likely be dismissed.

#498 · Judicial Review Procedure and Remedies

Does missing the federal 30 day judicial review deadline automatically end the claim, and can delay still matter within it?

Answer

No. A judge may extend time under s 18.1(2), but extensions are discretionary. Even an application filed within the period can be refused relief for undue delay. Provincial limits differ; Alberta Rule 3.15, for example, uses six months.

#499 · Judicial Review Procedure and Remedies

For a fact pattern, what remedies can a federal court grant on judicial review under section 18.1(3)?

Answer

Orders to do an act or refrain, prohibition, declarations of invalidity, setting aside or quashing, and remitting for redetermination. Relief is discretionary and damages are not on the list, so a damages claim needs an action.

#500 · Standard of Review (Vavilov)

On reasonableness review, what is the court's starting point when the decision-maker gave written reasons?

Answer

The court examines those reasons, read holistically and in light of the record, asking whether the decision is transparent, intelligible and justified. It does not do its own analysis first or substitute the answer it would have reached.